IN THE SUPREME COURT OF FLORIDA

CASE NO.: SC2025-1206

RODNEY TYRONE LOWE,
Appellant,

v.

STATE OF FLORIDA,
Appellee.

ON APPEAL FROM THE CIRCUIT COURT OF THE NINETEENTH JUDICIAL CIRCUIT, IN AND FOR INDIAN RIVER COUNTY, FLORIDA,

ANSWER BRIEF OF APPELLEE

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STATEMENT OF THE CASE AND FACTS

Rodney Tyrone Lowe, was convicted and sentenced to death for the July 3, 1990, first-degree murder of Donna Burnell and this Court affirmed. *Lowe v. State*, 650 So. 2d 969 (Fla. 1994), *cert. denied*, 516 U.S. 887 (1995). Lowe moved for postconviction relief and following extensive litigation including multiple amendments, days of evidentiary hearings over several months, and motions for rehearing, the trial court denied relief on the guilt phase issues but granted a new sentencing upon finding ineffective assistance of penalty phase counsel. Both parties appealed. This Court affirmed and remanded for a new penalty phase. *Lowe v. State*, 2 So. 3d 21 (Fla. 2008). The resentencing commenced on September 12, 2011,[1] and following the jury's unanimous recommendation, Lowe was resentenced to death and this Court affirmed. *Lowe v. State*, 259 So. 3d 23 (Fla. 2018), *cert. denied*, 587 U.S. 1070 (2019).

On June 13, 2020, Lowe filed his Fla. R. Crim. P. 3.851 motion. Following the State's response, Lowe filed an amended motion on September 6, 2022, after which, on November 7, 2022, the State responded. After the Case Management Hearing, Lowe was permitted to amend Claim

[1]The State will reference the relevant appellate records as: "ROA" for the original direct appeal in *Lowe v. State*, 650 So. 2d 969 (Fla. 1994), *cert. denied*, 516 U.S. 887 (1995); "1PCR" for the original postconviction litigation in *Lowe v. State*, 2 So. 3d 21 (Fla. 2008); "RS-ROA" for the re-sentencing in *Lowe v. State*, 259 So. 3d 23 (Fla. 2018), *cert. denied*, 587 U.S. 1070 (2019); and "2PCR" "corrected") for the postconviction litigation after re-sentencing and on appeal in case number SC2025-1206. Where the record is distinguished by record documents and transcripts and "R" or "T" will be noted. Supplemental records will be designated with "S" preceding the record type. The record cites will followed by the page number(s).

I(C) of his motion and later he filed a claim of newly discovered evidence. An evidentiary hearing was granted on: part of Claim I(C), ineffective assistance for failing to call Mae Daniels; Claim II(A), ineffective assistance for failing to challenge Dwayne Blackmon's 1991 testimony played for the jury: and newly discovered evidence from Tomeka Blackmon Bryant. The six-day evidentiary hearing was held November 18 - 21, 2024, and December 17, 2024. Relief was denied. Lowe appealed and filed a related habeas petition, case number SC2026-0914.

Facts of Crime

On July 3, 1990, Lowe shot Burnell three times in the face, head, and chest as she worked at the Nu-Pack convenience store in Indian River County. *Lowe*, 650 So. 2d at 971. The investigation revealed Lowe's involvement in the murder and Lowe gave a statement partially admitting his involvement. *Id.* The State's evidence established that Lowe's fingerprints were found on a warm hamburger wrapper at the scene, his car was seen leaving the Nu-Pack lot immediately after the shooting, his gun was used in the killing, Lowe was clocked-out from work at the time of the murder, Lowe confessed to a close friend about the shooting, and Lowe's police statement was played for the jury. *Id.* (ROA 822). The jury found Lowe guilty of first-degree murder and attempted armed robbery with a firearm. *Lowe*, 650 So. 2d at 971.

Original Postconviction

In his original postconviction motion, and consistent with his police statement, Lowe asserted that Lorenzo Sailor was the shooter. After multiple years of litigation and the discovery of other acquaintances of Lowe and

Blackmon, Lowe alleged that Blackmon was the shooter and counsel was ineffective in not finding Lisa Miller, Ben Carter, Lisa Grone, Maureen McQuade, and David Stinson to prove that and to support mitigation of Lowe's minor participation and disproportional punishment. *Lowe*, 2 So. 3d at 39-40, n. 7. Ultimately, the court rejected the challenge to Lowe's conviction but granted a new sentencing based the five witnesses to Blackmon's alleged statements he killed the victim. *Id.* This Court affirmed and remanded for a new sentencing. *Id.* at 36, 42.

Resentencing

At resentencing, the State again established that Lowe was the person in need of funds, and after two aborted attempts to rob the Nu-Pack store, clocked out of work on July 3, 1990, and attempted to rob and then killed Burnell. *See* "Overview" in Issue I below.

Lowe's mitigation case entailed testimony of correction officers, jail chaplain, family members, and a mental health expert. Lowe also presented witnesses to Blackmon's alleged admissions. Lisa Miller had twelve felony convictions and two crimes involving dishonesty. When she was fourteen years old, she dated Blackmon's cousin, Benjamin Carter. At a gathering a few months after the murder, she heard Blackmon arguing with Victoria [Blackmon's wife] and tell her "I killed one b***ch, I'll do it again" after which Blackmon told Carter some details of the Nu-Pack shooting. Miller stated Blackmon told Carter that Lowe, Sailor and Blackmon went into the Nu-Pack and while Lowe was getting a soda, Blackmon shot the clerk when she hesitated. Lowe dropped the soda and fled. Miller claimed she reported this to the police over the years. (RS-ROA-T.19 2264-66, 2268-70; 2273-77)

Carter, with eleven felonies, testified that in 1990, he had a good relationship with Blackmon and knew Lowe and Sailor. Carter averred that Blackmon never gave any details of the Nu-Pack homicide. When Blackmon spoke of killing a woman, he was speaking in anger; this Blackmon did five or six times. The first time Blackmon spoke of the killing was in 1992-93 when he was threatening Miller. Blackmon was reported to have said "you know I killed the b***ch," "you all don't f*** with me" or similar words. Carter does not know if Blackmon was being truthful and on occasion Blackmon would say Sailor killed the victim, but when Blackmon, a bully, wanted to be intimidating, he took credit. (RS-ROA-T.19 2281-86, 2288-91, 2294-95).

In rebuttal, Police Chief Phil Williams testified that no one ever gave him information indicating Blackmon was the shooter and he received no calls from anyone claiming to be Miller. (RS-ROA- T.20 2401-02). Officer Grimmich stated that at no time between 1990 and 2003 did Miller report Blackmon shot Burnell. (RS-ROA-T.20 2405-06). Investigator Kerby knew Carter and testified the police had no suspect for Burnell's homicide until they spoke to Carter. Lowe's name had not come up before they received a call from Detective Render on July 8, 1990, about Carter's information and they spoke to Carter personally on July 9th. Carter said Blackmon was his cousin and Carter had overheard a conversation between Blackmon and Lowe where Lowe admitted he had tried to rob the Nu-Pack and had killed the clerk. Kerby confirmed this with Blackmon and talked with Lowe thereafter. Carter took Kerby and Detective Green to Wabasso Park and showed them where Blackmon and Lowe practiced shooting. The police collected casings

and projectiles. Blackmon gave the police the murder weapon he received from Lowe (RS-ROA-T.20 2409-12).

The jury rendered a unanimous recommendation for death (RS-RAO-R.3 426) and the court found the aggravation sufficient to support a death sentence and outweighed the mitigation. Lowe was sentenced to death for the first-degree murder of Donna Burnell.[2] (RS-ROA-R.3 507-28; T-RS.22 2575-77).

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[2]The court found aggravators: (1) under sentence of imprisonment/on community control (great weight ("wt"); (2) prior violent felony (great wt); (3A) during a felony (great wt) merged with (3B) pecuniary gain; and (4) avoid arrest (great wt); the statutory age mitigator (little wt); and non-statutory mitigators: (1) good behavior while in confinement (moderate wt); (2) family relationships (little wt); (3) creative ability no wt); (4) maturity (little wt); (5) religious faith (little wt); (6) work ethic (little wt); (7) extra-curricular sporting activities (no wt); (8) Lowe is emotionally supportive of his sister (no wt); (9) low risk of future dangerousness (little wt); and (10) good courtroom behavior (little wt).

[3]The trial errors included (1) granting the State a cause challenge; (2) overruling defense counsel's objection to the State's use of a mannequin; (3) permitting the State's use of a computer-generated diagram of the crime scene; (4) admitting testimony regarding Lowe's possible sentence for a violation of community control; (5) restricting mitigating evidence and limiting cross-examination; (6) excluding the defense expert's testing results and finding a discovery violation; (7) State's closing argument comments amounted to fundamental error; (8) sending prejudicial evidence not introduced at trial to the jury; (9) precluding the jury from considering evidence of Lowe's limited role in the killing, disproportionate treatment, and a lawful evaluation of the aggravators; (10) not instructing the jury to make a culpability finding; (11) misleading the jury regarding sentencing options; (12) not independently weighing the aggravating and mitigating circumstances; (13) the aggravators found were not submitted to the jury properly and were not supported by evidence; (14) not applying the correct law and facts regarding mitigation findings; (15) denying Lowe's special verdict form

On appeal, Lowe raised eighteen claims.[3] During the appeal, *Hurst v. Florida*, 577 U.S. 616 (2016) and *Hurst v. State*, 202 So. 3d 40 (Fla. 2016) were decided, and Lowe was granted additional briefing on the claim. This Court affirmed the capital sentence. *Lowe*, 259 So. 3d at 68. On June 17, 2019, certiorari was denied by the United States Supreme Court. *Lowe v. Florida*, 587 U.S. 1070 (2019).

Current Postconviction Litigation

On June 13, 2020, Lowe filed his Rule 3.851 motion and sought leave to amend. The State responded on August 12, 2020. (2PCR 659-717). On June 6, 2022, Lowe file his amended Rule 3.851 motion and sought leave to interview jurors. (2PCR 1011-1148). The State responded to both motions. (2PCR 1349-1470). The trial court denied the motion for juror interviews and on March 1, 2023, held a Huff[4] Hearing. (2PCR 1473-74, 1542-49). Lowe was permitted to supplement his Claim I-C and an evidentiary hearing was granted on Claim II-A. The remaining claims were denied summarily. (2PCR 1542-49). After Lowe amended his Claim I-C regarding not calling the nine 1991 mitigation, he was granted a hearing only on counsel's failure to call Mae Daniels. (2PCR 1580-1670, 1678-88).

During this litigation, Tomeka Blackmon Bryant ("Tomeka") contacted law enforcement, and her interviews and associated documentation were disclosed to Lowe. (2PCR 1711). Additional investigation and public records litigation ensued, and Lowe was permitted to add a claim of newly discovered

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and instructions; (16) an incomplete appellate record; (17) death is not proportionate; and (18) cumulative error. *Lowe*, 259 So. 3d at 36.

[4] *Huff v. State*, 622 So. 2d 982 (Fla. 1983).

evidence regarding Tomeka and included in the evidentiary hearing which took place on November 18-21 and December 17, 2024. (2PCR 1744-47, 1855-1999, 2009-12, 3622-4794).

Tom Garland and Jeffrey Smith were Lowe's resentencing counsel and were called to testify about their representation and decisions made in the 2012 penalty phase. Lowe also called former defense and postconviction counsel, investigators who worked with Garland and Smith, Capital Collateral Regional Counsel investigators, a former State Attorney investigator, and five witnesses to Blackmon's alleged statements. Tomeka testified regarding her 2023 statements. The State called former investigators and counsel as well as Detective Jawarski, Celeste Galvin, and Victoria Blackmon Tomlin. Their testimony will be discussed in the individual claims.

Following the evidentiary hearing, the parties filed post-hearing memoranda (PCR 2839-2902, 2903-2955). On June 21, 2025, the trial court denied postconviction relief. (PCR 2965-3017). This appeal follows along with the related habeas response in case number SC2026-0914.

SUMMARY OF THE ARGUMENT

Issue I – The court properly applied *Strickland* in resolving Lowe's ineffectiveness claim regarding counsel's impeachment of Blackmon with his alleged statements that he killed the victim, his 1991 affidavit that he was coerced, and alleged status as a confidential informant. The court's rulings are supported by the evidence and credibility determinations.

Issue II – Tomeka Bryant's testimony did not qualify as newly discovered, would not have been admissible at a new trial or resentencing, but even if it were timely discovered and admissible, Tomeka's account was not credible and would not have produced an acquittal or lesser sentence. The court's findings and decision are supported by competent substantial evidence and credibility determinations.

Issue III – The court's summary denial of relief on claims on ineffective assistance and juror misconduct was proper as the claims were either untimely, procedurally barred, or refuted from the record. The evidentiary rulings were not an abuse of discretion. Lowe's sentence is constitutional.

STANDARDS OF REVIEW

Ineffective Assistance of Counsel - Standard of review of a *Strickland v. Washington*, 466 U.S. 668 (1984) claim after an evidentiary hearing presents mixed questions of law and fact and "this Court employs a mixed standard of review, deferring to the postconviction court's factual findings that are supported by competent, substantial evidence, but reviewing the postconviction court's application of the law to the facts de novo." *Douglas v. State*, 141 So. 3d 107, 117 (Fla. 2012) (citation omitted). Also, "this Court will not substitute its judgment for that of the trial court on 'the credibility of the witnesses as well as the weight to be given to the evidence. . . .'" *Blanco v. State*, 702 So.2d 1250, 1252 (Fla. 1997) (quoting *Demps v. State*, 462 So.2d 1074, 1075 (Fla. 1984)). *See also*, *Brown v. State*, 258 So. 3d 1201, 1206 (Fla. 2018).

Summary denial of postconviction claims - Review of the summary denial of a postconviction claim is de novo; this Court will accept the movant's factual allegations as true to the extent they are not refuted by the record. *See Peede v. State*, 748 So.2d 253 (Fla.1999). A summary denial will be affirmed where "(1) the motion, files, and records in the case conclusively show that the movant is entitled to no relief, or (2) the motion or particular claim is legally insufficient." *McKenzie v. State*, 153 So. 3d 867, 874–75 (Fla. 2014), *on reh'g* (Dec. 11, 2014); *Valentine v. State*, 98 So.3d 44, 54 (Fla. 2012); *Franqui v. State*, 59 Sov.3d 82, 95 (Fla. 2011)).

Newly discovered evidence claims - The standard of review of newly discovered evidence claims after an evidentiary hearing is that the decision will be affirmed "[a]s long as the trial court's findings are supported by competent substantial evidence, [we] will not substitute [our] judgment … on questions of fact, likewise of the credibility of the witnesses…." *Farina v. State*, 937 So. 2d 612, 622 (Fla. 2006); *Blanco*, 702 So.2d at 1252.

Evidentiary rulings – A trial court's evidentiary ruling are reviewed for abuse of discretion. *Glover v. State*, 226 So. 3d 795, 806 (Fla. 2017).

ARGUMENT

ISSUE I – The court correctly determined that Lowe's counsel provided constitutionally effective assistance under *Strickland*.

Lowe asserts he received ineffective assistance from his resentencing counsel and the court erred in rejecting his claims. He maintains that counsel: (A) failed to effectively impeach Blackmon; (B) failed to investigate and present mitigation used in the 1991 trial; and (C) counsel's decisions

were prejudicial under *Strickland* and cumulatively show an Eighth Amendment violation. The court applied the correct law, and its credibility and factual findings rest on competent, substantial evidence and should be affirmed.

Strickland v. Washington*, 466 U.S. 668 (1984) review.*

To establish ineffective assistance of counsel, a defendant must demonstrate (1) counsel's representation fell below an objective standard of reasonableness, and (2) but for the deficient representation, there is a reasonable probability the result of the proceeding would have been different; a reasonable probability is one which undermines confidence in the verdict/sentence. *See Strickland*, 466 U.S. at 687-89; *Valle v. State*, 778 So. 2d 906 (Fla. 2001). "The likelihood of a different result must be substantial, not just conceivable." *Harrington v. Richter*, 562 U.S. 86, 112 (2011). To obtain relief for a penalty phase claim of ineffective assistance the defendant must establish deficient performance and prejudice and in the context of mitigation, the court considers the "totality of the available mitigation evidence—both that adduced at trial, and the evidence adduced in the [postconviction] proceeding"—and "reweigh[s] it against the evidence in aggravation." *Brown v. State*, 304 So. 3d 243, 257 (Fla. 2020); *England v. State*, 151 So. 3d 1132, 1138 (Fla. 2014): *Dennis v. State*, 109 So. 3d 680, 695 (Fla. 2012).: *Bolin v. State*, 41 So. 3d 151, 155 (Fla. 2010). The defendant bears the burden of proving *Strickland* deficiency and prejudice. *See Orme v. State*, 896 So. 2d 725, 731 (Fla. 2005). When considering a claim of ineffectiveness, a court need not make a specific ruling on

the performance component where it is clear that prejudice is not proven. *Maxwell v. Wainwright*, 490 So. 2d 927, 932 (Fla. 1986).

Regarding the performance prong, "judicial scrutiny must be highly deferential;" "every effort" must "be made to eliminate the distorting effects of hindsight," "reconstruct the circumstances of counsel's challenged conduct," and "evaluate the conduct from counsel's perspective at the time." *Strickland*, 466 U.S. at 689; *Chandler v. United States*, 218 F.3d 1305, 1313 n.12 (11th Cir. 2000). "The test for ineffectiveness is not whether counsel could have done more; perfection is not required." *Id.*, at 1313 n. 12. "[A] court must indulge a strong presumption that counsel's conduct falls within the wide range of reasonable professional assistance." *Strickland*, 466 U.S. at 689. The ability to create a more favorable strategy years later does not prove deficiency. *Patton v. State*, 784 So. 2d 380 (Fla. 2000); *Cherry v. State*, 659 So. 2d 1069 (Fla. 1995); *Rose v. State*, 675 So. 2d 567, 571 (Fla. 1996).

Strickland "does not require counsel to investigate every conceivable line of mitigating evidence. . .Nor does Strickland require defense counsel to present mitigating evidence at sentencing in every case." *Wiggins v. Smith*, 539 U.S. 510, 533 (2003). "[S]trategic choices made after less than complete investigation are reasonable" only to the extent that "reasonable professional judgments support the limitations on investigation." … A decision not to investigate "must be directly assessed for reasonableness in all the circumstances." *Id.*, 539 U.S. at 533. The focus is on what efforts were undertaken and why a strategy was chosen; *Strickland*, 466 U.S. 690-91; *Williams v. Taylor*, 529 U.S. 362 (2000); *Chandler*, 218 F.3d at 1318. *Cullen v. Pinholster*, 563 U.S. 170 195-96 (2011) provides that there is a

strong presumption counsel exercised his reasonable professional judgment and the reviewing court is required "not simply to 'give [the] attorneys the benefit of the doubt,'…but to affirmatively entertain the range of possible "reasons [] counsel may have had for proceeding as they did …." "When counsel focuses on some issues to the exclusion of others, there is a strong presumption that he did so for tactical reasons rather than through sheer neglect. *Strickland*, 466 U.S. at 690 . . . (counsel is "strongly presumed" to make decisions in exercise of professional judgment)." *Yarborough v. Gentry*, 540 U.S. 1, 8 (2003). The Supreme Court reasoned that "[a]lthough courts may not indulge "post hoc rationalization" for counsel's decision making that contradicts the available evidence of counsel's actions, *Wiggins*, 539 U.S., at 526-527…, neither may they insist counsel confirm every aspect of the strategic basis for his or her actions." *Harrington v. Richter*, 562 U.S. at 109. "[T]he standard for judging counsel's representation is a most deferential one." *Id.* at 105.

Overview – Blackmon was not the shooter - Lowe was sole perpetrator.

Many of Lowe's claims surround the theme that he was not the shooter and Blackmon was. Irrespective of this Court's prior remand for a resentencing to allow Lowe to present witnesses to support his minor participant mitigation, *Lowe*, 2 So. 3d at 36, the evidence shows that Lowe and Lowe alone killed Donna Burnell. The following record evidence recitation will be relied upon for all claims pointing at Blackmon as the perpetrator and suggesting Lowe was anything other than the sole person responsible for the first-degree murder.

During the resentencing, the State established that on June 2, 1990, Blackmon gave Lowe a .32 caliber revolver for his birthday (RS-ROA-T.18 2043-44). Lowe was having financial difficulties, so he planned a robbery of the Nu-Pack store with Blackmon and Lorenzo Sailor ("Sailor"). On June 29, 1990, Lowe and Blackmon practiced shooting at trash cans in a Wabasso Park (RS-ROA-T.18 2046-47) and afterwards they, along with Sailor, cased the Nu-Pak. That day they aborted the robbery when Lowe, having gone inside the store with a loaded gun, saw two people there. (RS-ROA-T.18 2048-50).

According to Blackmon, the threesome returned to the Nu-Pak the following day and that time Lowe and Sailor got out, but when they were about to enter, a car entered the lot causing them once again to abort. Blackmon and Lowe did not discuss robbing the store after that second attempt. (RS-ROA-T.18 2051-55 2066-57).

On July 3, 1990, Blackmon was home in bed sick. Victoria Blackmon Tomlin ("Victoria"), Blackmon's wife at the time, was in bed with him when Patricia White Shegog ("Patricia"), Lowe's girlfriend at the time, arrived. After Victoria left with Patricia, Blackmon dressed so he could find Victoria and give her money. While driving, he saw Victoria and Patricia stopped by the police, so he went to Lowe's home. Later, the women arrived being driven by Lowe in a white car. (RS-ROA-T.18 2057-60).

Patricia lived with Lowe in June-July 1990 during which time they were having financial difficulties. Lowe possessed a .32 caliber revolver and had it on July 2-3, 1990. (RS-ROA-T.17 1911-18, 1984-85). Patricia testified that on the evening of July 2, 1990, at Lowe's direction, she put the gun under

the front seat of their Mercury Topaz. On July 3, 1990, Lowe took their Topaz to work (RS-ROA-T.17 1920-22) wearing his Gator Lumber uniform of brown pants, tan shirt, and ball cap. Later that morning, Lowe returned home between 10:00 and 11:00 AM to give her the car and returned him to work before going to Blackmon's home. (RS-ROA-T.17 1925-27) When Patricia arrived, Blackmon was in bed complaining he was sick; she recognized his voice. Shortly thereafter, Patricia and Victoria left. (RS-ROA-T.17 1928-30).

Victoria testified that between 10:30 and 11:00 AM, Patricia awakened her as she slept in bed with Blackmon. He was very sick with swollen tonsils. Blackmon was 6' 4," 280 pounds and would have awakened her had he arisen earlier. (RS-ROA-T.17 1985-88). While driving together, Patricia and Victoria were stopped by the police and told the car fit the description of a car seen leaving the scene of a crime. Patricia told the officer the car had been with Lowe that morning and worried the officer might find the gun she thought was still under the front seat. After receiving a ticket, the women returned to Blackmon's home so "Uncle James" could drive Patricia to Gator Lumber and have Lowe return them home. Lowe told Patricia he had removed the gun from the car previously. (RS-ROA-T.17 1929-32). Victoria confirmed that she and Patricia were stopped by the police, that "Uncle James" drove to Gator Lumber and Lowe took them home. Sometime after the homicide, Patricia gave Victoria a gun wrapped in paper toweling printed with blue ducks. Victoria confirmed the .32 was the one she later received from Lowe and gave to Blackmon. (RS-ROA-T.17 1989-97)

Blackmon's replayed 1991 testimony was that he and Lowe spoke on July 3rd near 4:30 PM and that Lowe confessed he had robbed the Nu-Pack,

but did not get any money. Lowe admitted he shot the clerk three times; twice in the head and once in the chest. Lowe said he shot the register, but it would not open, and that there had been a little boy in the store. (RS-ROA-T-RS 2060-61). After Blackmon received the .32 from Lowe through Vickie, he gave it to the police. (RS-ROA-T.18 2065-67) The projectiles from Burnell's body came from Lowe's gun. The shot to her chest was from less than a foot away. (RS-ROA-T.18 2097-2107)

Lowe left work at Gator Lumber at 9:58 AM and clocked back in at 10:34 AM on July 3rd. That morning, he was driving a white Topaz (RS-ROA1753-55). The last sale at the Nu-Pack that morning was at 10:07 AM and a 911 call was placed by Steven Luedtke ("Luedtke") at 10:17 AM (RS-ROA-T.14 1471-73; T.15 1740-41). No money was missing from the register. (RS-ROA-T.14 1479-80). When Luedtke arrived at the store, a white car, a Ford Taurus or similar model, was parked with no one inside. He averred that Patricia's Mercury looked like that car. (RS-ROA-T.13 1400-06) As Luedtke approached the front door, a black male wearing a ball cap exited and walked quickly toward the driver's door of the white car. The man was 5'8"-5'10" and weighed 150 to 160 pounds. The man was tall and thin, but shorter than Luedtke who is 6'2," and wore light colored clothing, (tan/light brown); the pants were lighter than the collared shirt which was buttoned. Luedtke said the man wore glasses and had a mustache and scraggly, but not full beard. (RS-ROA-T.13 1406-12, 1430-31). In June/July 1990, Lowe had a mustache (RS-ROA-TS.17 1983-84).

Once Luedtke entered the Nu-Pack, he heard a child crying and, as he approached the counter, he saw Burnell on the floor with the child kneeling

by her. Burnell was “sort of” non-responsive; she was shaking with her eyes rolled back in her head. He tried to comfort her as he called 911. He also noted the white car had left. (RS-ROA-T.13 1412-13, 1416-18). Luedtke assisted the police with the composite drawing. Approximately a week later, Luedtke viewed a live line-up, but was unable to pick out Lowe. (RS-ROA-T.13 1428-29).

The forensic investigation revealed there were no signs of a struggle in the store (RS-ROA-T.13 1438). A sweating Cherry 7-UP can was on the lottery table, and a warm wrapped hamburger was in the microwave. Two of Lowe’s prints were on the wrapper. (ROA 822; RS-ROA-T.13 1439-41; T.18 2126-34). Other than the front door, all the Nu-Pack doors were locked. (RS-ROA-T.13 1445).

In talking to the police, Lowe admitted he knew Burnell from another store but did not know she worked at Nu-Pack. (RS-ROA-T.14 1576-78) He admitted he left work twice on July 3rd; once at lunchtime and once when Patricia called him. (RS-ROA T.14 1583-85) When speaking to the police after he had talked to Patricia, Lowe admitted being at the Nu-Pack with Blackmon and Sailor but claimed he did not enter the store. Lowe was driving the white Topaz and stated Sailor had the .32 and Blackmon had the .38. According to Lowe, Sailor entered the store and Blackmon remained outside. (RS-ROA-T.14 1621; T.15 1656-59). In his last rendition, Lowe specifically placed Blackmon outside the store at the time of Burnell’s murder and claimed Sailor was the shooter. (RS-ROA-T.15 1657-59, 1662). Lowe reported that no money was obtained and that Sailor told him he exchanged words with Burnell who was “messin’ with her baby.” After looking at Sailor,

Burnell turned back to the child, and "Sailor" just went up to her and shot Burnell. Next, he tried to open the register, banged on it and shot it, but it would not open. (RS-ROA-T.15 1662-63, 1674-75, 1710-12). Lowe admitted he saw someone drive into the Nu-Pak as they were leaving. (RS-ROA-T.15 1663-64). Lowe knew the .32 was loaded on July 3rd and, after the shooting, he emptied the spent casings onto the roadway. The purpose of the robbery was to get rent money. (RS-ROA-T.15 1665-67, 1691-94, 1710-12).

Green reported that in July 1990, Blackmon was between 6'1"-6'2," 240 to 260 pounds; Lowe was 5'6" or 5'7" and noticeably shorter than Blackmon; Sailor was about 5,' 120 pounds and shorter than Lowe. (RS-ROA-T.15 1760-61). Kerby testified that on the day of his arrest, Lowe had a full mustache. (RS-ROA-T.15 1717).

A. Counsel rendered constitutionally reasonable representation regarding impeaching Blackmon with witnesses to his alleged statements of killing the victim.

Lowe asserts counsel was ineffective by not impeaching Blackmon with four additional witnesses to Blackmon's alleged statement taking credit for killing the victim in support of the minor participant mitigator. Lowe admits that his penalty phase counsel had over twenty boxes from Capital Collateral Regional Counsel which included the sworn statements of Lisa Grone, Maureen McQuade, David Stinson, Michael Lee[5] and the corresponding

[5]While this Court noted Lee's testimony would be admissible on a resentencing, *Lowe*, 2 So. 3d at 36, that was assuming he was available. The record shows Lee is deceased and unavailable for a new penalty phase. Lee did not testify previously so was not subject to cross-examination, thus, the State would be deprived of an "opportunity to fairly rebut the hearsay evidence" presented in Lee's statement and/or affidavit, rendering such evidence inadmissible hearsay. *Id. See Lightbourne v. State*, 644 So. 2d 54,

reports. Lowe posits that counsel should have investigated those witnesses further and put them before the jury in addition to new witness, Timothy Woulard, who Lowe claims was newly discovered. Lowe takes issue with the court's credibility findings and determination that the evidence conclusively proved Lowe was the sole perpetrator. The court's decision rested on competent, substantial evidence and credibility determinations deserving of deference. Counsel is not necessarily ineffective for failing to impeach a witness with additional evidence where that evidence is cumulative and counsel made a reasoned strategic decision under *Strickland*. *See Allen v. State*, 261 So. 3d 1255, 1274 (Fla. 2019) (reiterating "counsel is not ineffective for failing to present cumulative evidence"); *State v. Riechmann*, 777 So.2d 342, 356 (Fla. 2000); *Valle v. State*, 705 So.2d 1331, 1334-35 (Fla. 1997). This Court should affirm.

Order on McQuade, Grone, Stinson, Lee, and Woulard.

The trial court started its analysis outlining the State's trial theory and presentation showing that Lowe was the sole perpetrator and referencing the re-sentencing record. (2PCR 2985-86). The court found that re-sentencing defense counsel's initial theory was that Blackmon was the shooter, while Lowe was a minor participant, relying on the relief granted by this Court in *Lowe*, 2 So. 3d at 46. While counsel called Cater and Miller, their strategy subsequently changed as the evidence did not fit Blackmon being the killer. (2PCR 2986). Counsel's overall theory was that they did not have to prove who shot Burnell; they only needed to poke holes in the State's case and

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56-57 (Fla. 1994) (finding affidavits/letters of unavailable witness constitutes inadmissible hearsay).

offer evidence supporting the minor participant mitigator and that Lowe was now a different person. (2PCR 2986-87).

With respect to counsel's failure to call Grone, McQuade, Stinson, and Lee, the court found Garland and Smith had "considerable prior death penalty experience" and reviewed over twenty boxes of material containing trial, original postconviction, and appellate information. They developed their strategy based on their review, "initially relying on Lowe's postconviction proceedings as the template for the 2011 resentencing." (2PCR 2995). With that in mind, they hired Milano Investigations, asking that company to search for McQuade, Grone, Stinson, and Lee. "[D]espite the efforts made, not all witnesses were located." (2PCR 2995). The court concluded that that lack of success did not prove deficient performance because counsel is permitted to rely on his investigators under *Rompilla v. Beard*, 545 U.S. 374, 383 (2005).

The court noted the overall defense strategy of presenting the "age" and "minor participant" statutory mitigators with nonstatutory mitigation of upbringing, maturation, model prison behavior, and family relationships" noting "the paramount importance they attributed to maintaining credibility before Lowe's jury." (2PCR 2995). "To preserve that credibility, resentencing counsel relied on presenting consistent arguments, witnesses less subject to impeachment, and limiting cumulative evidence which would reduce the quality of defense presentation and open the witnesses up to collateral attack or contradiction." The court found that counsel considered Grone, McQuade, Stinson, and Lee" and set out counsel's considerations on each witness. (2PCR 2996).

The court specifically rejected Lowe's contention that Garland and Smith had no strategic reason for their decision regarding these witnesses stating Lowe's argument "ignores resentencing counsels' actual testimony and the resentencing itself." (2PCR 2998). The court found resentencing counsel "strategically elected" Carter and Miller to support the Minor participant mitigator, and that the other four witnesses "contradicted eyewitness and forensic evidence, and notably Lowe's own police statement which entirely contradicts the claim that Blackmon was inside the Nu-Pack and killed Burnell; thus, not fitting into the resentencing defense theory.[6] (2PCR 2998-99 n.11). The recognized that "Garland felt Carter was more credible than witnesses who smoked crack cocaine with Blackmon, and presenting qualitative evidence was stronger than cumulative evidence laced with contradiction." Further, the court noted "[r]esentencing counsel believed that Carter and Miller's testimony regarding Blackmon's alleged admissions left the door open to the jury concluding that Sailor may have been the shooter so the jury could find the 'minor participant' mitigator." (2PCR 2998-99). The court reasoned: "[p]resent postconviction counsels' speculative belief that calling more witnesses to testify to the same alleged admission would have resulted in a different sentencing outcome does not

[6]The court rejected Lowe's attempt to impeach Smith with CCRC investigator Emma Ridenhour's testimony because: (1) she was in the courtroom in violation of the rule of sequestration and "even if the Court considered Ridenhour's proffer, Smith's testimony was credible and believable that his memory was refreshed in preparing for the instant evidentiary hearing. Even if Smith was not credible, the court found it "received considerable alternative testimony from Garland relating to investigation and trial strategy decisions which would not alter the Court's findings and conclusions herein." (2PCR 2998-99 n.11) (emphasis supplied).

prove a Strickland deficiency or prejudice. . . . [quoting *Rhode v. Hall*, 582 F.3d 1273, 1284 (11th Cir. 2009)].” (2PCR 2998-99).

Continuing, the court found that even if the witnesses should have been presented, “despite not fitting the actual evidence or resentencing strategy,” given Leudtke’s testimony describing a man not fitting Blackmon’s description, the forensic evidence putting Lowe in the Nu-Pack, and Lowe’s police statement, Strickland prejudice was not proven. (2PCR 2999-3000).

With respect to Woulard, the court rejected the claim noting that Lowe did not prove it was “newly discovered” as Woulard was identified in Blackmon’s January 4, 1991, deposition. (2PCR 3000-01). Also rejected was Lowe’s reliance on the Covid-19 difficulties as CCRC had Blackmon’s 1991 deposition well before Covid-19 was declared a pandemic. Similarly, Lowe failed to overcome the fact that his 1997-2005 CCRC attorney had Blackmon’s deposition but did not raise the issue or explain why the issue was not raised in the 2020 post-resentencing motion. (2PCR 3001). As such, the court found the claim untimely and there was no showing to overcome that bar. (2PCR 3001-02). Even so, the court reached the merits and determined Lowe had not carried his burden, because the deposition “only indicates that Woulard was with Blackmon days before the murder” and does not show “Woulard was with Blackmon on the day of the murder, nor at the time that [Blackmon] had any information about the murder.” Given that timing, the court found counsel was not ineffective under Strickland. (2PCR 3002). Moreover, the court found Woulard not credible given his incarceration and prior ten to twelve felony convictions and Woulard’s conversation with Blackmon where Blackmon “confessed” as “while Woulard

and Blackmon were engaged in a crack cocaine drug transaction." (2PCR 3002).

The resolution of claims involving the five witnesses is supported by competent, substantial evidence and credibility determinations.

As Smith explained, the decisions he and Garland made were developed after reviewing the 1990 investigations of the Public Defender's Office and private counsel, Jim Long, the 2003-2004 postconviction litigation and additional investigations conducted before resentencing. Both Garland and Smith had decades of experience doing criminal trials; they completed over 100 felony criminal jury trials each. Garland had seven death penalty cases and Smith completed three before Lowe's resentencing. Both counsel testified that their credibility before the jury was very important and they would not want to be tainted by mistakes of other counsel or make inconsistent arguments, or make arguments which were not consistent with the evidence. (2PCR 3733-36, 3824-27, 3906-09, 3913-14). The court, as the fact finder, may rely on evidence from the State's cross examination, a witness's refreshed recollection, and credibility determinations. A fact finder is expected to resolve conflicts in the evidence. Here, the court resolved conflicts in the testimony, made credibility findings, and supported his conclusions with record cites showing counsel conducted a constitutionally reasonable investigation.

The "Overview" above reveals that Lowe was the only person at the crime scene and the sole perpetrator of Burnell's murder. Counsel investigated avenues to discredit Blackmon and presented witnesses to support that endeavor. Regardless of how many times Lowe claims

Blackmon was the shooter and regardless of how many witnesses Lowe points to as having heard Blackmon try to take credit for Burnell's murder, nothing was presented to undercut in the least the facts established at trial or during the resentencing that it was Lowe alone who committed the crimes for which he was convicted and sentenced. This alone negates any claim of Strickland prejudice. The only "evidence" that Blackmon or Sailor were involved comes from Lowe's self-serving statement. Moreover, Lowe's police statement contradicts any claim that Blackmon was the shooter; Lowe said that Blackmon remained outside the Nu-Pack while Sailor entered the store and killed Burnell. (2ROA-T-RS 1656-59). Lowe failed to show that adding additional witnesses to Blackmon's alleged statements, many said in anger to threaten or bully others, was deficient performance that would result in a different sentencing outcome. Lowe did not carry his burden.

Garland and Smith admitted to using the fact that postconviction relief was granted in *Lowe*, 2 So. 3d at 36 based on "Blackmon as the shooter theory." They were cognizant of their need to maintain credibility with the jury and avoid inconsistent arguments while trying to present witnesses less subject to impeachment and not present cumulative evidence for the sake of increasing the number of witnesses. Quality over quantity is important, especially where the additional witness may be less credible, subject to collateral attack, and offer testimony contradicting Lowe's and other witnesses' statements. (2PCR 3733-35, 3907-09). Such formed the initial defense strategy, and counsel presented witnesses they believed were more credible than others (2PCR 3735-36, 3909-10, 3952-53), but as the penalty phase progressed, they recognized that pointing at Blackmon did not fit the

evidence.[7] (2PCR 3736-54, 3931-53, 3957-58). After putting on Carter and Miller, counsel pivoted to offering Sailor as another possible perpetrator in part because he more closely fit the description Luedtke gave of the man leaving the store. Counsel testified that he did not have to prove who shot Burnell, he only needed to poke holes in the State's case and offer evidence in support of the minor participant mitigator. (2PCR 3752-53). The decision not to put on more witnesses to Blackmon's statement was strategic. Counsel had hired private investigators to seek those witnesses and counsel had either their prior testimony, recorded statements, or affidavits. Counsel were not deficient in the scope of their investigation given the private investigator's fruitless attempts especially in light of the evidence already collected on the witnesses.

It is well settled that counsel does not have to overturn every stone or beat every bush before determining he has sufficient information to make a reasoned decision. Such was the case here. Counsel made every effort to become familiar with Lowe's case and to talk to witnesses. Just because not all of the witnesses were found does not render counsel deficient. (2PCR 3177-90, 3192-97, 3199, 3202-04, 3206, 3375). Likewise, Milano's lack of success does not prove deficient performance as counsel is permitted to rely on his investigator. *See Rompilla v. Beard*, 545 U.S. at 383 (recognizing

[7]The fact that Blackmon turned over the murder weapon to the police undercuts both the theory that Blackmon was the shooter and Tomeka Bryant's suggestion that Blackmon killed Burnell. Blackmon could just as easily have discarded the murder weapon somewhere so it could not be found, or as Bryant suggested, into the septic tank. It makes little sense for Blackmon to turn over the "smoking gun," thereby making him a target for investigation if he were the shooter.

"duty to investigate does not force defense lawyers to scour the globe on the off-chance something will turn up; reasonably diligent counsel may draw a line when they have good reason to think further investigation would be a waste). Counsel considered the accounts of those witnesses raised in the 1997/2005 postconviction and Lowe. 2 So. 3d at 28. Counsel comprehended the credibility issues surrounding those witnesses and the statements which contradicted other witnesses and Lowe's confession. Any failure to put on more conflicting evidence would not change the sentencing calculus in the least and does not undermine confidence in the sentence. This was the pith of the court's order that is supported by the record.

Lowe's suggestion that counsel's investigation was per se deficient and that the court erred in accepting counsel's explanations of strategy is a meritless attack. Lowe takes issue with reliance on the strategy of not presenting contradictory witnesses and faults the court for accepting counsel's testimony. While that is the overall strategy/goals of Garland and Smith, the court, as fact finder, acknowledged that defense counsel did not have to prove anything and it is reasoned strategy to give a jury options and evidence to support a reason not to sentence a client to death. The fact that alternate theories were offered or that counsel felt they had presented sufficient evidence to support the minor participant mitigator by showing Blackmon made statements to Carter and Miller is the epitome of a strategic constitutionally acceptable decision under Strickland. *See Wiggins*, 539 U.S. at 533 (reiterating that "strategic choices made after less than complete investigation are reasonable" only to the extent that "reasonable professional judgments support the limitations on investigation." … A decision not

to investigate "must be directly assessed for reasonableness in all the circumstances." *Id.*, 539 U.S. at 533. The trial court's conclusion is proper and should be affirmed. *See Reaves v. Sec'y, Florida Dep't. of Corr*, 717 F.3d 886, 901, n.9 (11th Cir. 2013) (recognizing counsel's failure to recall his exact strategy does not equate to deficient performance, instead court presume counsel exercised reasonable professional judgment); *Williams v. Head*, 185 F.3d 1223, 1227–28 (11th Cir. 1999) (same).

For these same reasons, Lowe's suggestion that the court erred in accepting counsel's offered strategy disclosed during the State's cross-examination fails. (IB 40-42). Merely because the State's questioning led counsel to recall their strategy does not preclude the court finding that was, in fact, counsel's strategy. This is especially true where it was some twelve years between the resentencing and the evidentiary hearing. *Reaves*; *Williams*. Lowe is not entitled to relief based on counsel's unrefreshed recollections. Garland and Smith are presumed to have conducted the constitutionally appropriate investigation. The court found that they did conduct a proper investigation given their review of the nearly thirty years of records from trial and initial postconviction review. Also, Lowe has not shown that the four witnesses testimony, which conflicts with all the evidence in this case, undermines confidence in the sentence here. The jury rejected Carter and Miller; nothing supports that Blackmon was involved in Burnell's murder. As Carter testified, Blackmon would claim that he killed the victim when he wanted to intimidate someone. There is nothing in the four witnesses' testimonies to suggest that Blackmon was not merely trying to intimidate,

as was his way. The court correctly determined that neither deficiency nor Strickland prejudice was established. This Court should affirm.

Lowe's attack on the court's credibility findings must be rejected. It is well settled, an appellate court's review does not "reassess the credibility of witnesses or reweigh the evidence. . . . Rather, we limit our review in this respect to whether the circuit court's determinations are supported by legally sufficient evidence. *Hutchinson v. State*, 416 So. 3d 283, 289 (Fla. 2025). *See Calhoun v. State*, 376 So. 3d 583, 586 (Fla. 2023); *Lambrix v. State*, 39 So. 3d 260, 268 (Fla. 2010); *Nixon v. State*, 2 So. 3d 137, 141 (Fla. 2009). The mere fact that counsel offered the jury alternate theories on the shooter to support the "minor participant" mitigator does not mean that the court erred in finding counsel's testimony credible about defense strategy.

Counsel put on Carter and Miller believing they were sufficient to support the minor participant mitigator issue before the jury. Resentencing counsel admitted that the case facts and forensic evidence and the second half of Lowe's police statement entirely contradicted the claim that Blackmon was inside the Nu-Pack (2PCR 3735-46) and this informed his strategic decision to rely on just Cater and Miller as support for the defense case. It was Garland's thinking that given Carter's familial connection with Blackmon, he was more credible than witnesses who smoked crack cocaine with Blackmon; Garland was strategizing based in part on cumulative versus qualitative evidence. (2PCR 3775-80) Merely because different counsel would have done things differently does not prove *Strickland* ineffectiveness. Further, Garland left the door open to the jury to conclude that Sailor may have been the shooter so the jury could find the "minor participant" mitigator.

Again, merely because present counsel suggests that more witnesses to the same alleged admission would have resulted in a different sentencing outcome does not prove *Strickland* deficiency or prejudice.

Garland and Smith reasoned that would not put on evidence merely to add more witnesses to say what Carter and Miller had already offered, especially where those witnesses may contradict Carter and Miller. “Which witnesses, if any, to call, and when to call them, is the epitome of a strategic decision, and it is one that we will seldom, if ever, second guess.” *Rhode v. Hall*, 582 F.3d 1273, 1284 (11th Cir. 2009)(citing *Waters v. Thomas*, 46 F.3d 1506, 1512 (11th Cir. 1995); *Van Poyck v. Florida Dep’t of Corr.*, 290 F.3d 1318, 1324 (11th Cir.2002) (noting “[i]t is well-settled . . . that a petitioner cannot establish an ineffective assistance claim simply by pointing to additional evidence that could have been presented.”). “[T]here comes a point at which evidence … can reasonably be expected to be only cumulative, and the search for it distractive from more important duties.” *Bobby v. Van Hook*, 558 U.S. 4, 11 (2009). *See Marquard v. State*, 850 So.2d 417, 429-30 (Fla. 2002) (stating “counsel is not required to present cumulative evidence.”); *Jennings v. State*, 583 So.2d 316, 321 (Fla. 1991) (finding “It is not negligent to fail to call everyone who may have information about an event. Once counsel puts on sufficient evidence, if believed by the jury, to establish his point, he need not call every witness whose testimony might bolster his position.”). Such supports the court’s conclusion.

Also, Garland testified that he would not want to present McQuade because her testimony conflicted with Carter and Miller. It would undercut Carter by putting him as part of the “three-man group” involved with the Nu-

Pack incident and give more support for Blackmon's motive, i.e., intimidation, for saying he killed Burnell. McQuade's account, in Garland's estimation, "did not jive with anything" and she admitted to daily drug use. (2PCR 3731-33, 3794-95, 3918-23). Garland did not seek to use Grone because Victoria testified and he called Carter and Miller; she also put Carter as a perpetrator. (2PCR 3680-82). Respecting Stinson, Smith noted he was heavily into drugs and named Carter as being with Blackmon for the crimes. Stinson would contradict Carter's testimony, which the defense did not want. (2PCR 3682-86). Smith explained he would not want two defense witnesses "telling different stories." Also, her fifteen-month delay in raising Blackmon's "admissions" impacted counsel's decision not to call her. (2PCR 3928-30). The court, as fact finder viewing the witnesses live, was in the best position to assess Garland and Smith's credibility which this Court should accept.

Lowe's other challenges to the court's denial of relief.

Lowe alleges that the State's case did not exclude Blackmon as the shooter. (IB 53). The State reincorporates its record proof set forth in its "Overview" section above to refute that proposition. It will address some of Lowe's other complaints.

Lowe claims that the trial court erred in summarily denying his ineffectiveness claim for counsel's failure to challenge the fingerprint evidence by allowing the State to ask about counsel's strategy regarding the forensic evidence and to discuss the hamburger found in the microwave and its temperature. (IB 54-55). The State will address the ineffectiveness claim related to the fingerprints in Issue III and incorporates that here. There was no error in the summary denial on that point. Even so, it was proper to

allow the State to question counsel, including on the fingerprints, as part of its inquiry of counsel about their understanding of all the evidence against Lowe and their strategic decisions to address that evidence. Such does not call into question the court's ultimate ruling that no Strickland ineffectiveness or prejudice was established.

Lowe asserts that the State committed a *Giglio v. United States*, 405 U.S. 150 (1972) violation. (IB 55). Lowe is incorrect. After the evidentiary hearing, Lowe moved to strike the State's reference to the "warm hamburger wrapper," because it was not in the record and the State responded pointing out where that reference was in the original trial transcript. (2PCR 2960-63, 3018-21). While Lowe's confession included Detective Green's statement to Lowe that a warm hamburger wrapper was found in the microwave (RS-ROA-T 1714-16), Green testified at the original trial that: "At the crime scene we recovered a warm hamburger from the microwave oven and also there was a soda can next to the microwave oven in the store that had condensation on it showing it had just recently been placed there." (ROA 822) (emphasis supplied). Given that there is testimony supporting the relative temperature of the hamburger (warm) in the record, no Giglio violation was established. The warmth of the hamburger was a fair question to pose to resentencing counsel to gage their understanding of the evidence and how the evidence factored into their decision-making. Lowe's suggestion that the State was untruthful is unsupported and unsupportable. Moreover, given the testimony regarding a warm hamburger being found at the scene undercuts Lowe's attack upon Smith. (IB 56). It completely refutes the charge that Smith blindly adopted the State's assertion.

Lowe did not challenge resentencing counsel's examination of Luedtke. Nonetheless, Luedtke's description of Lowe and his failure to pick Lowe out of the lineup was covered with the resentencing jury. (RS-ROA 1426, 1428-30). Lowe's suggestion otherwise is without record support and is meritless. Luedtke' eyewitness account placed Lowe in Patricia's car at the time of the murder and excluded Blackmon and Sailor as being on scene.

A review of Lowe's confession shows that his final version was that it was Sailor with the .32 caliber murder weapon who killed Burnell. Lowe reports in his confession what Sailor "told" Lowe and Blackmon after the shooting, what Burnell and her child were doing before the shooting, how and where Sailor shot Burnell, how he shot the register, and failed to get any cash. (RS-ROA 1636-38, 1656-59, 1662-63, 1672-75, 1684, 1694-96, 1710-12). Lowe's final taped account placed the blame for the attempted robbery/homicide at Sailor's feet.

None of Lowe's evidentiary challenges call into question the fact that he committed the homicide alone. As such, the court, like the original jury and the resentencing jury, determined that Lowe was the sole perpetrator and any suggestion the Blackmon was the shooter is refuted by the record as set out in the State's Overview above. Such factors into counsel's strategy and supports the determination there was no Strickland prejudice. The court's determination that counsel were not ineffective should be affirmed.

The court's conclusion that the Woulard claim was untimely and meritless is supported by the record.

Lowe maintains that it was ineffective assistance for counsel to not find and present Woulard. He also asserts that the court erred in finding the claim

untimely and combined with the other witnesses, the court should have found ineffectiveness. Not only was this claim untimely but neither individually nor as a group, counsel's decision was not ineffective.

Lowe admitted, Woulard's name was first referenced in Blackmon's January 4, 1991, deposition. There, Blackmon noted he met with Woulard on June 29, 1990, a few days before the murder. (2PCR 3395-96, 4675-76). According to this Court's docket in case number SC2012-0263, CCRC was appointed on January 14, 2019, having represented Lowe in 1997-2005 collateral litigation. Eighteen months later, Lowe did not include Woulard's name in his June 13, 2020, Rule 3.851 motion. (2PCR 506-650). Two more years passed before Lowe first included Woulard in the 2022 postconviction motion which claimed it was ineffective assistance for counsel not to find and present Woulard as another person alleged having heard Blackmon take credit for the murder. In a footnote, Lowe pled in the alternative that Woulard was "newly discovered."[8] (2PCR 1037, 3395-96, 4675-76). Woulard was not raised in the 1997-2005 original postconviction motion litigated by CCRC or in the 2020 motion in this case, yet his name was known and discoverable with due diligence since 1991 and could have been included in the 2020 motion.

[8]A claim of newly discovered evidence in a capital case must be brought within one year of the date evidence was discovered or could have been discovered through due diligence. *Glock v. Moore*, 776 So.2d 243, 251 (Fla. 2001); *Buenoano v. State*, 708 So.2d 941, 947-48 (Fla. 1998); *White v. State*, 664 So.2d 242, 244 (Fla. 1995). Lowe missed that time limit by two years at best or decades considering the 1997-2005 litigation.

Lowe may argue that the State's position that Woulard was discoverable proves resentencing counsel was deficient for not discovering/ investigating Woulard. The State's position does not prove Strickland deficiency as that is a different question. The *Strickland* question was whether resentencing counsel's investigation-consideration regarding Woulard was deficient or strategic, especially in light of the other witnesses to Blackmon's alleged statements and the facts of the case. Woulard's reference in Blackmon's deposition merely revealed that Blackmon and Woulard met days before the murder. That information did not show that Blackmon spoke with Woulard after the murder. Hence, in and of itself, the deposition is not the smoking gun Lowe alleges it to be and failure to investigate further does not establish an error of Strickland proportion. Woulard's name in the deposition addresses matters well before the murder and does not touch on mitigation and would not prompt a reasonable attorney to spend scarce resources investigating. The fact that the State points to Lowe's failure to raise the claim in 2020 does not prove resentencing counsel was deficient. An ineffectiveness claim places the burden on Lowe to prove that a reasonable counsel would have made that connection and discovered evidence that would have established Strickland prejudice; meaning that it would undermine confidence in the sentence. Lowe has not proven either Strickland prong as found by the court.

Similarly, even accepting CCRC's administration limited field investigations during Covid even after Governor DeSantis opened the State, as Lowe alleges, that does not excuse the prior lack of diligence for not attempting to make telephone contact to get a preliminary understanding

of what Woulard knew so Lowe could later amend should a face-to-face conversation reveals more information. Likewise, Covid-19 does not excuse the failure to include Woulard's name in the 2020 motion. Again, CCRC had the case from 1997 through the January 9, 2009, *Lowe*, 2 So. 3d at 21, and was re-appointed on January 14, 2019, following *Lowe*, 259 So. 3d at 23. As such, CCRC had the case some thirteen before filing the 2020 motion. Lowe's failure to explain why his 1997-2005 and 2020 CCRC counsel could not have discovered this evidence earlier precludes relief here and supports the finding that the 2022 amended claim was untimely. *See Sireci v. State*, 773 So. 2d 34, 41 (Fla. 2000) (finding claim insufficiently plead as "[o]ne of the elements which must be established to find that evidence is indeed "newly discovered" is that the evidence could not have been discovered through the exercise of due diligence. This requirement makes it logically inconsistent for a defendant to argue, as Sireci does, that evidence is newly discovered because counsel was ineffective. That is, the evidence could not have been discovered even with the exercise of due diligence; therefore, counsel could not have been ineffective in failing to discover it.").

Lowe asserts that he should be allowed to amend with a new claim if he shows good cause. However, as the facts set out above show, Lowe had no excuse, and showed none, for failing to include the name of a potential witness, Woulard, known to him since 1991 and to CCRC since 1997. The Covid-19 restrictions certainly did not preclude counsel from relying on the 1991 deposition and including Woulard's name in the 2020 motion.

Even if Lowe did not have to meet the newly discovered evidence standard, Woulard's testimony does not support *Strickland* ineffectiveness.

If counsel should have presented the five witnesses to offer some version of "Blackmon was the killer," the evidence conflicts with that theory and would not produce a different result under the *Strickland* prejudice standard. This is evident from the fact the 2011 resentencing jury unanimously recommended death even knowing witnesses heard Blackmon's alleged admissions. Simply presenting additional witnesses, with all their negative history, saying that Carter, not Sailor was involved, and giving Blackmon a motive to take credit for the killing, such as intimidation and bragging rights "to a body" does not establish that an acquittal or life sentence would result. Resentencing counsel made strategic decisions and noted they decided that they had presented sufficient witnesses on the issue and adding more witnesses would not further the defense's case. Given the evidence in the "Overview" detailed earlier, in this highly aggravated case, the additional witnesses add nothing new to the sentencing calculus and the *Strickland* ineffective claim fails. Relief was denied properly and should be affirmed.

The rejection of the Strickland claim based on failure to admit Blackmon's affidavit is supported by the record.

Lowe maintains counsel was ineffective for not presenting Blackmon's October 26, 1990, affidavit by calling former counsel, John Unruh, to impeach Blackmon. Lowe claims that the court failed to address his claim. Lowe still has not explained how Blackmon's 1990 affidavit was admissible or that Garland's strategic decision is not reasonable under Strickland, as the court concluded. A review of the record shows that the court addressed the Strickland claim, applied the correct law, and its conclusions are supported by the record and should be affirmed.

The trial court's order on the Blackmon affidavit to be presented through John Unruh.

The court cited the testimonies of Garland and Smith for "their awareness and belief that the Blackmon affidavit was rife with controversy, causing them to strategize how to handle it" and that they made strategic decisions not to present the affidavit through John Unruh or Cliff Barnes.[9] (2PCR 3003). "Garland testified as to the strategy of calling Blackmon's wife, Victoria Blackmon, along with Carter and Miller, to attack Blackmon's credibly" and through them "presented the jury with evidence of Blackmon's nine prior felonies, Blackmon's feeling of police pressure, Blackmon's admission to the murder, and Blackmon's later recanting of his affidavit." (2PCR 3003). "Smith specifically recalled discussions surrounding the Blackmon affidavit feeling it was 'fraught with peril as far as trying to get it in'" and that "messy enough" that the defense "didn't think it would play well to the jury" especially "with the allegations of conflicts" and the State's expected rebuttal. Ultimately, the defense thought "it was better left where we left it than trying to get that in and have the sideshow of bringing those lawyers in to talk about how they got that affidavit." (2PCR 3003). The court rejected Lowe's narrow focus on counsel's unsuccessful attempts to use the affidavit in cross examination of Detective Green while ignoring "counsels' ability and

[9] Unruh and Barnes had represented Lowe and Blackmon simultaneously and helped create the Blackmon affidavit in 1990. This led to their disqualification from Lowe's case and an order from Judge Wild "finding Unruh was evasive and deceptive." (2RCR 3003, n.13). Lowe did not allege in 2020 or 2022, that it was ineffective assistance not to call Barnes to discuss/admit the affidavit. Any reliance on his testimony now should be found untimely, insufficiently pled, and waived under Rule 3.851(d) and (f)(4).

requirement to create a defense strategy that they believed was strongest for Lowe, while maintaining credibility with the jury by limiting distracting arguments which would dilute the defense." The court agreed with Smith where he testified "'. . .as with every other piece of evidence, you have to analyze what a jury is going to think about it. . . . the sponsorship strategy of what you put on and what you don't put on. Just because you have something and can doesn't mean you always do or should." (2PCR 3004). The court fund counsel made a strategic decision not to introduce Blackmon's affidavit "while obtaining substantively the same information through different means" which is "well within counsel's purview." (2PCR 3004).

Further, the court found that Lowe did not prove Strickland prejudice as Blackmon's affidavit did not meet the requirement of section 90.806 "as Blackmon was not available to testify, thus he was unavailable to lay the foundation for admission of his 1990 affidavit" following, *Lowe*, 259 So. 3d at 43-44. (2PCR 3004). The trial court noted that Blackmon was deceased prior to the resentencing and Unruh would not have been able to lay the proper foundation for the affidavit as "Unruh did not make the statements within the affidavit, nor is it alleged that Unruh would have made inconsistent statements on the witness stand." (2PCR 3006). "Even assuming the Blackmon affidavit was admissible, further adding to its controversy is Blackmon's 2003 postconviction testimony claiming that most of the statements within the affidavit were lies." (2PCR 3006). The court found Strickland prejudice was not proven given that "the jury received evidence that Blackmon had felt pressure to testify against Lowe and counsel

"'cannot be deemed ineffective for failing to prevail on a meritless issue.' *Teffeteller v. Dugger*, 734 So. 2d 1009, 1020 (Fla. 1988)." (2PCR 3006).

The trial court addressed Lowe's Strickland claim and the ruling rests on competent substantial evidence and credibility findings.

The record shows that during the penalty phase, Garland tried to admit Blackmon's affidavit into evidence through Detective Green. ("Green"). The State objected, the penalty phase court sustained the objection, and on appeal, this Court found this was harmless error. The Court reasoned that impeaching Green with Blackmon's affidavit which included statements that Green was pressuring/coercing Blackmon and which were inconsistent with Green's in-court testimony met the dictates of section 90.806. *Lowe*, 259 So. 3d at 43-44. This Court found that the affidavit would be admissible during Green's testimony "but only to the extent that the purported statements could be isolated to Officer Green, and only after the proper foundation had been laid and Officer Green first denied making the statements. . . ." *Id.* at 44.[10]

Garland explained his strategy for not calling Unruh to even attempt to introduce the affidavit including that counsel was well aware of the "problematic" aspects of the affidavit and Unruh's role in its creation. (2PCR 3761-75, 3796). Garland was concerned that Unruh's involvement of pitting one client's interest against another, namely, Blackmon and Lowe,

[10]This Court noted: that during Lowe's prior postconviction case, Lowe argued to this Court that Blackmon had "attempted to recant his affidavit and accused the assistant public defenders of forcing him to sign the affidavit even though some of the facts in the affidavit were not true." *Lowe*, 2 So.3d at 36. Blackmon himself testified at the postconviction evidentiary hearing that, among other things, "most of the statements in the affidavit were either lies or statements that had been twisted." *Id. Lowe*, 259 So. 3d at 44 (emphasis supplied).

and Unruh's eventual disqualification from Lowe's case may negatively impact Lowe, his counsel, and the defense argument. Also of concern to Garland was the State's expected lengthy cross-examination of Unruh and the eventual admission of Blackmon's 2003 testimony on the affidavit and Judge Wild's finding that Unruh was evasive and deceptive during the disqualification hearing. Garland worried the jury may draw the same conclusion and that it could create problems for the defense, hence, he elected not to call Unruh or seek admission of the affidavit. (2PCR 3765-68).

The same concerns were voiced by Smith. Ultimately, the defense team reasoned that the affidavit had issues given how it was created. Smith though the affidavit was "fraught with some peril" and "we felt like we had gotten [the information] in through other sources enough that it wasn't worth it." (2PCR 3898-3900). Smith thought the affidavit was "messy enough" that it may not "play well" before the jury given "allegation of conflict" and the State's expected rebuttal. Smith reasoned the affidavit was "better left where we left it than trying to get that in and have the sideshow of bringing those lawyers [Unruh and Barnes] in to talk about how they got that affidavit. (2PCR 3902-03). While Smith agreed the affidavit might have proved useful absent the "noise" around its creation, he was of the opinion it should not be offered. (2PCR 3903).

Given that resentencing counsel was well aware of Blackmon's 1990 affidavit and all the pitfalls in trying to admit it, a strategy decision was made not to admit the affidavit. This is the epitome of reasoned strategy, one that is proper under Strickland and does not amount to deficient performance. Assessment of a witness's credibility and impact on the defense are strategy

decisions well within counsel's purview. *Puglisi v. State*, 112 So. 3d 1196, 1206 (Fla. 2013) (holding "[d]efense counsel must have the ultimate authority in exercising his or her client's constitutional right to present witnesses as such is a tactical, strategic decision within counsel's professional judgment"). Whether to call a witness is a strategy decision subject to deference. *See Ferguson v. State*, 593 So. 2d 508, 510 (Fla.1992) (finding counsel's decision to not put on an expert to be "reasonable strategy in light of the negative aspects of the expert testimony); *State v. Bolender*, 503 So. 2d 1247, 1250 (Fla. 1987) (holding "[s]trategic decisions do not constitute ineffective assistance if alternative courses of action have been considered and rejected").

Lowe offers that prejudice was proven because Blackmon's credibility would have been undermined or his account "rejected outright" had the affidavit been admitted. For support, Lowe points to *Nixon v. Newsome*, 888 F.2d 112, 115-16 (11th Cir. 1989) and *Smith v. Wainright*, 799 F.2d 1442, 1443-44 (11th Cir. 1986). Neither case supports his assertion. In *Nixon*, the issue was whether counsel's failure to cross-examine a testifying witness with her contradictory testimony in a co-defendant's case. In *Smith*, counsel was found ineffective for not impeaching two testifying witnesses with their prior inconsistent statements and permitting the State to argue, based on the witnesses' trial testimony, that they had consistently identified the defendant as the perpetrator. Such is not the case here. Lowe suggests the affidavit should have been presented, not through Blackmon, but through Unruh and not as impeachment of Unruh but of Blackmon. Unruh was not the

proper party through which the affidavit could be offered, thus, there was no Strickland prejudice.

Another basis for affirming the court's rejection of Strickland prejudice is that while Unruh was not called and the jury did not have the affidavit to read, counsel cross-examined Victoria Blackmon extensively on the reason why she and Blackmon were called to the State Attorney's office in November 1990. Victoria explained that Blackmon had been arrested on an unrelated charge, and he claimed he was feeling threatened/coerced to assist the State in prosecuting Lowe. The jury was told that Blackmon threatened not to assist the prosecution unless he received help with his charge. Hence, the jury learned of the pressure Blackmon voiced in the affidavit but was shielded from the negative aspects of Unruh's involvement and Blackmon's 2003 testimonial recantation of the affidavit during the original postconviction case. (2PCR 3769-75). The parameters of admission of hearsay materials must meet section 90.806, *Lowe*, 259 So. 3d at 43-44, but the affidavit would not be admissible through Unruh. Blackmon was deceased so a foundation could not be laid.[11] and the statements in the affidavit were not Unruh's and he was not making inconsistent statements on the stand. The court correctly assessed the evidentiary issue and determined no Strickland prejudice was shown. "Counsel cannot be deemed ineffective for failing to prevail on a meritless issue." *Teffeteller*, 734 So. 2d at 1020. *Cf. Dennis v. State*, 109

[11]Even if the affidavit could have been admitted, the State would have been able to use Blackmon's 2003 postconviction testimony to explain how the affidavit came to be signed including Unruh's controversial role in its creation causing his disqualification, and Blackmon's testimony that much of the 1990 affidavit was untrue.

So.3d 680, 692 (Fla. 2012) (“counsel was also not ineffective for failing to raise a meritless objection”). This Court should affirm.

The court’s rejection of the claim counsel should have presented evidence that Blackmon was a confidential informant is supported by the record.

Lowe claims counsel was ineffective for failing to present evidence through McQuade and Stinson to show that Blackmon was a confidential informant (“CI”) for Sebastian Police Department. Stinson did not testify at the hearing on this issue, thus the claim was waived. *See Owen v. State*, 773 So.2d 510 (Fla. 2000) (affirming denial of relief where defendant waived claim when he failed to produce any evidence in support of claim). Also, Lowe did not prove Blackmon was a CI. Even if McQuade and Stinson should have been called, Strickland ineffectiveness was not proven. The trial court made credibility determinations, and the ruling is supported by competent substantial evidence and should be affirmed.

The court’s order.

The court found that resentencing counsel “were unable to substantiate that Blackmon was a CI and the information was more of a rumor than fact.” The court determined that counsel’s assessment was based on McQuade and Stinson’s affidavits, the witnesses’ credibility, lack of personal knowledge of Blackmon’s status as a CI, and the potential that McQuade’s testimony would conflict with the evidence and more credible witnesses. The court concluded that the affidavits supported counsel’s testimony. (2PCR 3006-07). Also, the court disagreed with Lowe’s premise that had counsel presented McQuade and Stinson and asked Carter follow-up questions regarding Blackmon’s status, the jury would have been able to

assess Blackmon's credibility. (2PCR 3007-08). The court found that Stinson "did not testify that [Blackmon] was a CI" and the subclaim as to Stinson was waived. (2PCR 3008). Lowe did not prove Blackmon was a CI and so not calling McQuade was no Strickland ineffectiveness. (2PCR. 3008). Alternately, even if Stinson and McQuade should have been called, prejudice was not proven as the jury received alternate evidence on Blackmon's credibility "or lack thereof" and even if Lowe proved Blackmon was a CI, it would not have lead to a different result. (2PCR 3008).

Analysis

Counsel testified that they hired a private investigation firm which tried to locate McQuade and Stinson. Although McQuade was found, Stinson was not. Nonetheless, counsel had the affidavits or reports on these witnesses. (2PCR 3670-73, 3677-78, 3683-86, 3707, 3731-32, 3774, 3793-95, 3855-56, 3918-29, 4002). Counsel is permitted to rely on his investigator's efforts to find witnesses without being labeled ineffective. *See Wilson v. Sirmons*, 536 F.3d 1064, 1136 (10th Cir. 2008); *Wilson v. Workman*, 577 F.3d 1284 (10th Cir. 2009). While the Sixth Amendment guarantees reasonable competence, it does not require perfect advocacy judged with the benefit of hindsight. *See Yarborough v. Gentry*, 540 U.S. 1, 6 (2003); *Murphy v. Davis*, 901 F.3d 578, 592 (5th Cir. 2018) ("counsel's performance need not be optimal to be reasonable."). Resentencing counsel testified that they made the strategic decision not to call McQuade given how her testimony would conflict with the evidence and other witnesses who counsel thought would be more credible before the jury as counsel did not have personal knowledge Blackmon was a CI (2PCR 3775, 4002) and McQuade

and Stinson do not prove Blackmon was, in fact, a CI. Given that counsel did not have personal knowledge or a witness to say that Blackmon in fact was a CI, no deficiency under Strickland was established. As the court found, the evidentiary hearing testimony from McQuade and Stinson did not prove Blackmon was a CI. Without factual support that Blackmon was a CI, Lowe failed to establish ineffective assistance for not putting on evidence that does not exist or does not prove what he wished to prove. Whether or not Blackmon was a CI does not undercut in the least the facts establishing Lowe was the sole perpetrator nor does it undermine confidence in the sentence.

At the evidentiary hearing, McQuade offered no actual proof that Blackmon was a CI, only speculation. She testified that Blackmon asked her to sign up with Darryl Jones ("Jones") to become a CI and that she did this but never worked for the police or received remuneration. She stated that before Jones came to the house where she and Blackmon lived, Blackmon did not have any money, but after Jones left, Blackmon had money. Lowe suggests that this shows Blackmon worked for the police. This alleged transaction did not occur in McQuade's presence. (2PCR 4705-08, 4712-15).

Lowe says the fact that McQuade saw Blackmon with money only after Jones left and that Blackmon told her where he got the money, somehow prove he was a CI. (IB 80). The record does not support this conclusion. All McQuade said was that Blackmon told her where he got the money, not what the money was for. (2PCR 4713-14). Given this accounting, Lowe has not proven his case, and as the court found, McQuade's assessment of the situation and Blackmon's status was speculative at best. Also, all Lowe points to regarding Stinson is his affidavit where he reports that Blackmon

"was known to have a relationship with the police as a CI." (1PCR 2502; 2PCR 2696; IB 80). Lowe makes too much of that affidavit and offers nothing actually showing that Blackmon was a CI. Lowe has not proven that counsel's alleged failure to call McQuade or Stinson was deficient or prejudicial under Strickland. Counsel had no actual proof of Blackmon being a CI, he assessed the evidence/witnesses uncovered, weighed it against the case evidence, and made a strategic choice not to present McQuade and the "Blackmon CI" speculation. This is the epitome of constitutionally reasonable performance.

B. Rejection of the Strickland claim for failure to call Mae Daniels and the 1991 lay mitigation witnesses is supported by the record.

Lowe alleged that counsel was ineffective for not calling nine lay mitigation witnesses from the 1991 penalty phase. He was permitted to amend that claim and received an evidentiary hearing on counsel's decision not to call Mae Daniels. In denying relief, the court assessed not only counsel's decision regarding Daniels but also the other eight lay witnesses from 1991. The record supports the Strickland ruling that a strategic decision was made not to call Daniels and that the witnesses called in the 2012 penalty phase conveyed the same information the 1991 witnesses would have offered rendering Lowe's claim meritless. Lowe has not proven Strickland ineffectiveness.

The court's order.

After setting out Garland's testimony and the 2012 mitigation presentation, the court found counsel's strategy not to call Daniels was "a clear strategic decision" one made after investigation, speaking with Daniels, "assessing how her testimony could be rebutted by the State" and

considering “what other means the same information could be adduced in furtherance of resentencing counsels’ strategy.” (2PCR 2988-89). This “fits squarely within the Strickland standard for constitutional representation.” (2PCR 2989). The court credited Garland’s thirty-four years of practice, seven death penalty cases, and over one hundred jury trials. (2PCR 2990).

The court determined that prejudice was not proven as Lowe’s expert, Dr. Riebsame, “spoke with Daniels and other family members directly about Lowe’s homelife and corporal punishments received. He factored this into his opinion that this was not ‘abuse’ or ‘beatings’ and there was no cause and effect in relation to the murder.” (2PCR 2990). The court noted Daniels is deceased and Lowe would be limited to her 1991 testimony as the State would not be able to cross-examine her regarding the statements she made to CCRC, rendering those statements inadmissible. (2PCR 2990).

The court then assessed the eight lay witnesses from the 1991 trial compared it to the 2012 presentation and found it to be the same as demonstrated by the mitigation found by the resentencing judge. *Lowe*, 259 So. 3d at 35, n. 7. (2PCR 2991-2). The court found Lowe’s claim “conclusory, vague, cumulative and fails to acknowledge that resentencing counsel was not mandated to utilize the prior records, or court findings, as a roadmap that could not be deviated from” and that Lowe did not prove that not presenting the eight witnesses was Strickland deficiency, nor did Lowe demonstrate that the testimony of the witnesses would have changed the sentencing calculus and undermine confidence in the sentence as required by Strickland. (2PCR 2992-93).

The court's order is supported by competent substantial evidence regarding Daniels and the court properly assessed the 1991 lay witnesses under Strickland.

During the 1991 direct appeal, this Court found Daniels testified about Lowe's father's conversion to Jehovah's Witness and her opinion this cause problems and because Lowe rebelled and Lowe was unhappy and got into trouble. *Lowe*, 650 So. 2d at 971-72. This Court also stated that Lowe's father was called and he "explained that the aunt visited only twice a year; he agreed that he was a strict disciplinarian, but that he did not believe his religion caused his son to commit these acts. He stated that he would never speak to his son again." *Id.* (emphasis supplied).

Twenty years later, Garland developed a strategy for Lowe's resentencing. He decided not to call Daniels after he read her 1991 testimony, Charles Lowe, Sr.'s 1991 rebuttal, and spoke to Daniels by telephone where she admitted that she did not see the abuse of Lowe herself. (2PCR 3793). Garland felt Charles was "very forceful" in opposing Daniels's account and that Daniels would not help Lowe's case. (2PCR 3721-24). Expounding on this, Garland testified he "felt that [Daniels] hadn't lived in the household, she was sort of being told what happened and what was going on, and that when she was called in the first trial," the State called Charles who denied everything and, therefore, Daniels would not be effective in front of the jury. (2PCR 3782). Garland "felt that given the case that [Daniels] hadn't had that much involvement in the family, she wouldn't be . . . that credible, and [the State was] going to bring in the rebuttal testimony of [Charles]. And I didn't think that was a winning formula." (2PCR 3790). Also,

Garland knew that Lowe's mother and sister, as well as Dr. Riebsame,[12] would testify about Lowe's strict religious household; Dr. Riebsame had talked to Daniels so the doctor could understand the family dynamic. (2PCR 3786, 3791). Garland's decision not to call Daniels was made after he talked to her directly. (2PCR 3781, 3792).

The trial court believed Garland's account that his decision was made after considering the 1991 presentation, the State's potential rebuttal, and after talking to Daniels. That credibility determination is due deference. Moreover, Garland's investigation and assessment of the evidence was reasonable and strategic; Garland did what a reasonable, constitutionally professional counsel would do; his strategic decisions met Strickland standards. *Strickland*, 466 U.S. at 690-91 (announcing "strategic choices made after thorough investigation of law and facts relevant to plausible options are virtually unchallengeable; and strategic choices made after less than complete investigation are reasonable precisely to the extent that reasonable professional judgments support the limitations on investigation. In other words, counsel has a duty to make reasonable investigations or to make a reasonable decision that makes particular investigations unnecessary. In any ineffectiveness case, a particular decision not to investigate must be directly assessed for reasonableness in all the circumstances, applying a heavy measure of deference to counsel's judgments."); *Wiggins v. Smith*, 539 U.S. 510, 521 (2003); *Wheeler v. State*,

[12]For details of Dr. Riebsame's testimony, the State relies on its recitation set out below in its answer to the claim of ineffectiveness for not calling the 1991 lay witnesses.

124 So. 3d 865, 881 (Fla. 2013) (rejecting ineffectiveness claim for failing to call additional witnesses where counsel investigated/evaluated the witness and decided not to call the witness because he could have injured defense case and the information was presented via other witnesses); *Everett v. State*, 54 So. 3d 464, 474 (Fla. 2010); *Davis v. State*, 928 So. 2d 1089, 1110 (Fla. 2005); *Spencer v. State*, 842 So. 2d 52, 62 (Fla. 2003); *Johnson v. State*, 769 So.2d 990, 1001 (Fla. 2000); *Occhicone v. State*, 768 So.2d 1037, 1048 (Fla. 2000. Lowe failed to prove that Garland's decision was an error so serious he was not functioning as required by the Sixth Amendment.

Furthermore, Lowe failed to show Strickland prejudice because. even at a new penalty phase, Lowe would be limited to Daniels' 1991 testimony as she is deceased. Hence, Daniels's account allegedly given a CCRC investigator would be inadmissible hearsay. While hearsay may be admitted in a capital penalty phase, it is not admissible where the State would not have a fair opportunity to rebut it. *Lowe*, 2 So. 3d at 40; *Blackwood v. State*, 777 So. 2d 399, 411-12 (Fla. 2000). The State would not be able to cross-examine Daniels's out of court statements, rendering them inadmissible.

Also, Dr. Riebsame spoke to Daniels directly and after reviewing background materials and talking to Lowe and other family members, Dr. Riebsame testified about Lowe's homelife and the corporal punishments he received. The doctor found that the discipline was not "abuse" or "beatings" and there was no cause and effect respecting the murder. (RS-ROA-T 2391). This is a highly aggravated case, *Lowe*, 259 So. 3d at 35, n. 7 with the Age aggravator and non-statutory mitigation of little to moderate weight. *Id.* As explained above, even if Daniels were to testify, her account

would be rebutted by the testimony from Lowe's father, the fact Daniels may have seen Lowe only twice a year, did not personally witness any physical abuse, and Dr. Riebsame's opinion that the corporal punishment was "not abuse." Daniels's account would not undermine confidence in the sentence as required by Strickland.

The eight 1991 lay mitigation witnesses.

Counsel was not ineffective under Strickland for not calling the other eight lay witnesses as their testimony would have been cumulative to that presented in 2012. The court's rejection of this claim should be affirmed.

In the 1991 penalty phase, Jolene Burke testified she was an educational manager in the prison where Lowe was incarcerated and he obtained his GED, worked well as a teacher's aide, helped other inmates, stayed out of trouble, and adapted to the structured environment. (1ROA 1169-73). Burke helped Lowe get a position with Gator Lumber. (ROA 1173). Gordon Hine, a prison pastor, met Lowe at a halfway house after his release from prison where Lowe attended Hine's Bible studies, was a congenial/ good tenant who fulfilled his assigned household chores. Hine also helped Lowe get a job with Gator Lumber and discovered Lowe was a responsible hard worker (ROA 1178-80). Corrections Classification Officer, Mark Porter, testified that Lowe had one written disciplinary report during his prison confinement and was an average inmate. (ROA 1222-23).

The Gator Lumber employees, Patrick Loftus, Richard Cunningham, Catherine Brandes, Charles Wimes, and Ted Hamilton generally reported that Lowe started with Gator Lumber as a part-time employee and due to his good work ethic was promoted to full-time and eventually was given the

responsibility of running the yard when the yard foreman was away. (ROA 1188-90, 1200, 1206, 1227). They generally characterized Lowe as doing an “excellent job;” being a friendly, “reliable,” hard worker, who fit in well with his co-workers, and was there when they needed him. (ROA 1189-90, 1199-1200, 1205-06, 1227, 1234).

During the 2012 resentencing, Garland offered testimony from correction officers, a jail chaplain, family members, witnesses to Blackmon’s “admissions,” and Dr. Riebsame. The chaplain and corrections officers from Florida State Prison and Indian River County Jail testified to Lowe’s good behavior and that he was a model inmate with minimal disciplinary reports, who attended religious services. (RS-ROA-T.18 2176-78, 2180, 2183-85, 2202-03; RS-ROA-T.19 2224-27, 2235-38, 2241-42, 2259-61). Dale Resinella, the chaplain found Lowe authentic, genuine, and a “very honest and sincere person seeking spiritual growth.” (RS-ROA-T.18 2191, 2197-99, 2202-05). Greg Berg, a sergeant with the jail stated Lowe had no disciplinary reports, exhibited good conduct, was “low key,” and respectful. (RS-ROA-T.19 2221-25). Ronald McAndrews, a former Warden, noted Lowe had just two minor disciplinary reports - one was for a “ruckus” during a volleyball game and one for refusing to shave. Lowe interacted well with prison staff; there were no negative comments in his file. McAndrews opined that Lowe would do well in general population. ((2ROA-T-RS.19 2228-45)

With respect to Lowe’s family life, his mother Sherri Lowe stated that Lowe grew up in a humble, well-maintained home. His father, Charlie, was a hard worker responsible to his family and did many things with them but was strict. The discipline included talking, counseling, revoking privileges,

and corporal punishment involving the use of a hand or belt. The family was average and the members did things together, many involving their church. (RS-ROA-T.19 2296-2304, 2319-20). Sherri admitted that Charlie had a drinking problem before joining Jehovah's Witness and when Lowe was twelve, his parents separated for about six weeks. After joining the church, Charlie made positive changes in his life. (RS-ROA-T.19 2301-05)

Up to middle school, Lowe was a quiet/calm child who was not a discipline problem. He did his chores and helped with his younger sister. (RS-ROA-T.19 2306-08). When Lowe turned fifteen or sixteen years old, things changed; Lowe rebelled over his restrictive life. By seventeen, he was displaying defiant behavior, skipping school, and missing curfews. He was arrested and upon his release from prison, he returned home and his parents tried to get him on the right path. His parents remained supportive of Lowe and kept in contact after the murder conviction; they encouraged each other. (RS-ROA-T.19 2308-12, 2315-17, 2320-22, 2330-32).

Lowe's sister, Toni, seven or eight years his junior, spoke of how her brother was there for her and how he helped her with homework and chores. They had a good relationship. (RS-ROA-T.20 2336-38). Even after his incarceration, Lowe maintained contact with Toni, counseling and encouraging her. He offered to help pay for her schooling and sent her cards and gifts. Toni loves her brother and described him as very caring and wanting the best for her; Lowe continues to encourage her. (RS-ROA-T.20 2340-42).

In the resentencing, Dr. Riebsame informed the jury that Lowe did well in school and was of average intelligence. (RS-ROA-T-RS.20 2353, 2367).

The doctor testified that Charlie conveyed his disappointment with his son and Lowe presented as a man who had not had a positive male role model in his life. (RS-ROA-T.20 2352-53). The doctor found Lowe did not have any particular criminal activity before he was fifteen; he did well in school. Problems started when Lowe was in his mid-teens in response to what was going on in the house. Lowe ran from his father's discipline and spent nights in abandoned homes or in the woods. By seventeen, Lowe was homeless, shunned by his family and church. (RS-ROA-T.20 2343-45, 2353-55). Dr. Riebsame spoke to Lowe and his mother, aunt, and siblings about Charlie's use of alcohol. All referenced Charlie's "heavy alcohol use," while Sherri minimized it. Charlie stopped drinking when Lowe was twelve. (RS-ROA-T.20 2370, 2390). Corporal punishment was employed; Charlie would use his hand, extension cords, broom, stick, or paddle to the boys' calves, thighs, and buttocks. (RS-ROA-T.20 2374-75, 2391). The doctor expounded upon Lowe's lack of coping skills as a teenager and his struggles with his family life, religion causing him humiliation/embarrassment, and his father's alcoholism. (RS-ROA-T.20 2369-75). Dr. Riebsame discussed Lowe's wide variety of interests, his ability to interact with people, capacity to tolerate being alone, his good jail behavior and lack of future dangerousness. (RS-ROA-T.20 2363, 2388).

Steven White, the Gator Lumber foreman, testified Lowe had been employed there in July 1990 and how he had asked for time off on the morning of the killing. (2ROA-T-RS-16 1844-54).

From this recitation it is clear the jury heard of Lowe's situation following his 1987 incarceration, his social history, good behavior,

religious devotion, willingness to help fellow inmates, and lack of future dangerousness. What was not presented was that Lowe was considered a good co-worker even though he left work to commit the murder and was a teacher's aide even as a convicted felon. The only unpresented information related to Lowe's employment relationships and Catherine Brandes's new report that Lowe helped her once while she was pregnant. The teacher's aide, good employee mitigation, and new testimony that Lowe helped Brandes are events from over thirty years ago and are de minimis given the more timely and relevant evidence presented at resentencing addressed to Lowe's last thirty years being a good inmate and helping other inmates with coping skills and religious studies. Counsel merely exchanged Lowe's eighteen-months of good employment history from 1989-1990 with a thirty-year history of being a good inmate and helping fellow inmates.

It is well settled that counsel does not render ineffective assistance by not placing before the jury cumulative evidence. *Rutherford v. State*, 727 So. 2d 216, 225 (Fla. 1998)(finding additional evidence offered at postconviction evidentiary hearing was cumulative to that presented during penalty phase, thus, claim was denied properly); *Van Poyck v. State*, 694 So. 2d 686, 692-94 (Fla. 1997); *Woods v. State*, 531 So.2d 79, 82 (Fla. 1988); *Card v. State*, 497 So.2d 1169, 1176-77 (Fla. 1986).

As the trial court concluded, and is clear from and supported by the record, the resentencing mitigation covered what was contained in the 1991 presentation. Even if the 1991 lay witnesses should have been called, they would not have added any new mitigation of significance given the mitigation the sentencing court found. The sentencing result would not have been

different in this highly aggravated case and confidence in the outcome has not been undermined. Lowe failed to carry his burden under Strickland.

C. There is no cumulative error.

Lowe points to Justice Pariente's statement in her dissent in *Lowe*, 259 So. 3d at 71, to suggest cumulative error here. There, Justice Pariente pointed to allowing the jury to consider the avoid arrest aggravator, the instruction on sentencing options, and the credit Lowe was to receive for time served to find: "we cannot conclude that the Hurst error" was harmless. *Lowe*, 259 So. 3d at 71. The majority found otherwise regarding those issues. Lowe does not identify which error he is referencing here, however, his major complaint is with counsel's effectiveness in impeaching Blackmon and not calling the 1991 lay witnesses. In this case, the court did not find any Strickland ineffectiveness; thus, Lowe's cumulative error claim fails. *See Vining v. State*, 827 So. 2d 201, 219 (Fla. 2002) (finding where "alleged errors are either meritless or procedurally barred, or do not meet the Strickland standard" "the contention of cumulative error is similarly without merit").

ISSUE II – Tomeka Bryant's Testimony Did Not Meet the Newly Discovered Evidence Standard.

Lowe asserts the court erred in finding Tomeka's testimony untimely and inadmissible under the newly discovered evidence standard. He also challenges the court's finding that Bryant was not credible where thirty-three years after the murder she reported hearing Blackmon set up Lowe and admit to Burnell's killing. The record shows that Lowe failed to prove that Tomeka's evidentiary hearing testimony, constitutes "newly discovered evidence." She waited thirty-three years after the murder and more than

twenty years after Blackmon died before she came forward and her account was thoroughly discredited and would not established Lowe's innocence of the robbery/homicide, nor prove mitigation to the extent a lesser sentence could be obtained. The court's findings are supported by competent, substantial evidence as are the credibility determinations and legal rulings. This Court should affirm.

A newly discovered evidence claim must meet two requirements: (1) the evidence "must have been unknown by the trial court, by the party, or by counsel at the time of trial, and it must appear that defendant or his counsel could not have known [of it] by the use of diligence;" and (2) "be of such nature that it would probably produce an acquittal on retrial." *Jones v. State*, 709 So. 2d 512, 521 (Fla. 1998) (citation omitted). *See Damren v. State*, 397 So. 3d 607, 610 (Fla. 2023); *Wright v. State*, 857 So. 2d 861, 870-71 (Fla. 2003); *Jones v. State*, 591 So. 2d 911, 915 (Fla. 1991). Where the defendant is challenging his death sentence, he must show "that the newly discovered evidence would probably yield a less severe sentence"— i.e., a life sentence—rather than an acquittal. *Walton v. State*, 246 So. 3d 246, 249 (Fla. 2018) (quoting *Swafford v. State*, 125 So. 3d 760, 767 (Fla. 2013)). Furthermore, a claim of newly discovered evidence in a capital case must be brought within one year of the date evidence was discovered or could have been discovered through due diligence. *Glock v. Moore*, 776 So.2d 243, 251 (Fla. 2001); *Buenoano v. State*, 708 So.2d 941, 947-48 (Fla. 1998); *White v. State*, 664 So.2d 242, 244 (Fla. 1995). Where the offered new evidence would not be relevant or admissible on retrial, the defendant has not met his burden. *Dailey v. State*, 329 So. 3d 1280, 1286 (Fla. 2021) (rejecting

newly discovered evidence claim because the new information would not be relevant and admissible on retrial). The requirement that the alleged newly discovered evidence "would probably produce an acquittal on retrial" is a higher standard than the Strickland prejudice standard and "is on par with the 'more likely than not' standard of prejudice." *Damren*, 397 So. 3d at 611.

Evidentiary hearing testimony.

Tomeka stated she was born on February 27, 1981, is 43-years old, and had one conviction. She noted that she was nine-years old and attending Pelican Island Elementary School in July 1990 and that she came forward to the police on February 23, 2023,[13] thirty-three years after the fact, even knowing Blackmon died in 2003 and Ruby Blackmon ("Ruby") died in 2001. (2PCR 4194, 4209, 4214, 4217, 4219-20, 4224, 4226, 4247).

Tomeka also claimed that she heard and saw certain things sometime in the summer of 1990[14] but did not come forward until thirty-three years later. (2PCR 557). She testified that one summer day, she does not know which summer day, she was playing in her backyard at Ruby's house,[15] when she overheard Blackmon[16] "saying something" to Sailor about an unnamed

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[13]Even though the police scheduled to meet Tomeka and offered her security options, she did not show for that meeting. The police ended up having to go to her out-of-county home a month later. (2PCR 4229-30).

[14]She also admitted that when she first reported her account to the police, she said the incident she was relating happened when she was 10 or 11-years old in 1994 or 1995. On cross-examination, she thirty-three years later.

[15]Ruby's house is located at 6325 87th Place. Tomeka does not know when she moved out of the house. (2PCR 4244-45)

[16]Blackmon was her brother through adoption but related by blood. Yet, she did not know his birthday, only that he was born in 1970 or 1971. She offered that they did not spend time together. Tomeka liked Lowe because he gave her money for ice cream. (2PCR 4176, 4235-36, 4246-47).

store, saying it was “the perfect place” to which Sailor responded, “he’s not into that” with Blackmon replying, “he didn’t have a choice.” Blackmon also said that the “perfect time would be lunchtime.” According to Tomeka Blackmon said he “found the perfect schmuck for it, to go down for it” and Sailor responded, “I’m not going to jail for this.” Blackmon replied, “I just want to know what it feels like to kill someone.” Tomeka claims that Blackmon meant Lowe when he said “schmuck.” (2PCR 4186-87, 4244-46, 4257, 4277, 4289). Tomeka claimed that she was upset on the witness stand because she did not “think it admitted she did not know the time/date this happened, she “just knew it was in the nineties.” “I don’t know. I just knew it was in the nineties. I can’t really tell you if it was ’94 or ’95. I don’t remember how old I was.” (2PCR 4256-57, 4293). Tomeka claimed she did not “think [she] would come to this” when she called the police to make her allegations, saying, “No one listens to a child and I will get a whooping.” (2PCR 4188). She stated when she tried to tell Ruby what she heard Blackmon say was bad, she “just got a whooping” and was told it was none of her business. (2PCR 4188).

Tomeka claimed she heard a conversation on the day she was picked up early from summer school by Blackmon and his wife, Victoria and driven to Lowe’s house, the duplex near Wabasso Park (2PCR 4189, 4247, 4258-59). This was on a Monday, during one of the three-four summer months, before lunchtime, and before her summer school music class. Her summer school music class was at 9:45 a.m.. Blackmon picked Tomeka up in a small car that had music, but she does not know the color or the number of door of the car. (2PCR 4190, 4245-47, 4251-53, 4259-60, 4263). Being picked up by Blackmon that day was unexpected, but Victoria had picked her

up previously. She said they drove her to the “apartments by the park,” the duplex, where Patricia normally was. She was told to wait for the cable man in exchange for $50 from Blackmon, but the cable man never showed. The TV was working and she watched cartoons. Tomeka claimed she spent a lot of time with Victoria and Blackmon. (2PCR 4189-90, 4252, 4254, 4263-64).

According to Tomeka, Sailor then arrived riding his bicycle and Blackmon stated, “this is how it’s to go down.” Blackmon got some gloves and opened a drawer with two guns inside. (2PCR 569-70). Blackmon had the “black” gun with a “silver looking handle”[17][18] and the other one “looked … like you would open it up.” Blackmon loaded the second gun. However, Tomeka admitted that when she spoke to the police in March 2023 she said the guns were silver and Blackmon’s gun handle was black; “a silverish black” handle. Tomeka met with Lowe’s CCRC defense team three times and independently looked up guns online. In explaining the change in her description of the guns from her March 2023 statement to her 2024 testimony, Tomeka admitted that she “looked it up on the Internet;” she “was just looking at guns and they looked silverish black. So I don’t know the difference….” She also admitted that she does not “really know” the difference between a revolver and a semi-automatic. When the deputy described the difference between a revolver and semi-automatic, she stated that neither Blackmon nor Sailor had revolvers. Her ultimate statement on

[17]The murder weapon was blue stee - dark color with wooden handles. The murder weapon was not silver and did not have a black handle (RS-ROA-T 1457-58, 1757-59, 1858-60, 1914-18; 2PCR 4618-19).

[18]Tomeka also stated that Blackmon had guns in his home, but they were bigger than the ones she saw that day (2PCR 4192-93).

the guns was “I don’t really know which kind of gun it really is” so “I might be confused.” (2PCR 4190, 4192-93, 4266-74) (emphasis supplied).

Tomeka next said Lowe drove up to his home by the park in a small pick-up truck wearing a blue shirt with a name tag.[19] Lowe arrived during his lunch break. (2PCR 4193, 4208, 4265, 4276-77). Tomeka admitted “[T]hey talked” after Lowe entered the house “but I wasn’t really paying attention because I was trying to watch TV and they were loud.” Then “they left,”[20] meaning Lowe, Blackmon, and Sailor, in the car Blackmon had used to get Tomeka from school. She testified that Lowe sat in the back seat and someone had to move the front seat for him to get into the car. Sailor was in the front passenger seat and Blackmon drove. Tomeka thought it was Blackmon’s car since he always had it.[21] Tomeka said it was a long time before Blackmon and Sailor returned after Magilla Gorilla, Space Ghosts, and the Droopy Dog cartoons were finished. Tomeka had “no clue how long” the men were gone. (2PCR 4194-95, 4278-83).

Blackmon and Sailor returned in the same small white car. Tomeka described Sailor as looking scared and Blackmon as happy and smiling; Blackmon said he felt good. Sailor supposedly said, “I’m not going down for this” and “it was a f**king kid” and Blackmon responded by hitting Sailor and pushing his face. Lowe was not present and Tomeka did not see him again.

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[19] In July 1990, Lowe and Patty were not living in the duplex near the park, but had moved to Sea Mist Dr. (2PCR 5443, 4624).

[20] The fact that Lowe left with Blackmon and Sailor does not exonerate Lowe from being a principle in the robbery/homicide. Lowe’s confession and fingerprints at the scene support his conviction. *See Lowe*, 2 So. 3d at 32-33.

[21] Patricia and Victoria remained with Tomeka at the residence.

(2PCR 4195, 4201, 4287-88). Not long after Blackmon and Sailor returned, Tomeka went to Ruby's house being driven in the white car. Once there, Tomeka claims she saw, through the window, Blackmon throw a gun into the septic tank, but she did not identify which gun. That day, Tomeka[22] did not tell Ruby what she heard because Blackmon told her not to say anything or he would beat her. (2PCR 4199-4200, 4262-63, 4284-85). When Tomeka did tell Ruby about what she had heard, Ruby told her it was none of her business and Tomeka "got a whooping." (2PCR 4200).

Later, Tomeka overheard a conversation between Ruby and Blackmon. In response to Ruby's questions "What did you do? And What did you touch?" Blackmon said "he killed her" and "that he had a sandwich, but [Lowe] took the sandwich." Tomeka admitted she "didn't understand what that meant." When she was caught eavesdropping, she got a whooping from Blackmon. At no time did Tomeka tell the deputies in her 2023 phone call or statement that Blackmon hit her. (2PCR 4203-04, 4232, 4292). She admitted that Ruby was an elderly woman who weighted sixty to seventy pounds and had severe arthritis. Before her alleged operations, Ruby's hands did not function well and she was wheelchair bound. (2PCR 4232-33)

At some point, Tomeka was sent to her biological mother, Patricia Woodard, who lived in Pennsylvania, and she stayed there for a year or two. (2PCR 585, 598). Tomeka said she was sent away because she would often bring up with "Mommy," meaning Ruby, the incident involving Blackmon; she

[22]The trial record shows that Blackmon was using Lowe's blue sedan and Lowe and Patricia had the two-door white Topaz. Lowe even confessed to having the white Topaz on the day of the murder.

would be sent away each time she brought up the subject, so she stopped talking about it. The last time Tomeka spoke of that was when Blackmon moved to Covington, Kentucky in 1995. Tomeka also said she was sent to live with Victoria and Blackmon in Kentucky in 1994 while she was pregnant and returned to Florida before her child's birth in November 1995. Tomeka averred that she did not attend school there nor was she home-schooled. She could not recall much about Covington. (2PCR 4206-07, 4219-23).

The State called Victoria Blackmon, Blackmon's wife from 1987 to 1998. On July 3, 1990, she and Blackmon were living at the duplex on Broxton Road near Wabasso Park; Lowe and Patricia lived in Sebastian off of Seamist. They had lived at Ruby's house previously. (2PCR 4525, 904, 4542-43, 963-64). In July 1990, Lowe did not live with them. (2PCR 4538-39). Neither Victoria nor Blackmon ever picked up Tomeka from school as they were not on the school authorized list. (2PCR 4539-43, 4551, 4554-55). Victoria never told Tomeka she had to wait for the cable man; Victoria would not order cable service because it was in Lowe's name. (2PCR 4560, 4585-86).

Victoria testified that Ruby was wheelchair-bound and had difficulty holding things in her arthritic hands; her hands were contorted and curved inwards, and she had no grip strength. Ruby had to be helped with her activities, such as her daily absolutions and bathroom activities; she was incapable of doing things for herself. Also, Ruby never had an operation to repair her physical ailments. Ruby was merely a verbal disciplinarian, not physical one. Victoria never saw Ruby give Tomeka a "whooping;" Ruby could hardly walk more than a few steps. (2PCR 4547-51)

In July 1990, Blackmon drove Lowe's blue car. The white car was Patricia's which Victoria and Blackmon never drove. On July 3, 1990, Victoria was in Patricia's car. Lowe did not own a pick-up truck and Victoria never saw him in such a vehicle. (2PCR 4551, 4562-63, 4593).

At no time was Victoria present for any discussion where Blackmon voiced setting up Lowe and Tomeka never told Victoria that she knew Blackmon was the killer. Further, Blackmon never used the word "schmuck." In the ten years Victoria knew Blackmon, he never called a hamburger a sandwich. (2PCR 952-55, 977)

Celeste Rinehart-Galvin ("Galvin") was the principal of Tomeka's school between 1987 and 1993 and the principal during the 1990 summer session which encompassed July 1990. The typical summer school day started at 8:15 a.m., with lunch at noon, and discharge was at 1:00 p.m. Summer classes were for remedial math, English, and writing. There were no special classes, no music, art, or physical education. While Tomeka attended the 1990 summer school session, Galvin did not know whether Tomeka attended classes on July 3, 1990, or whether there were classes on that day. (2PCR 4515-22).

Trial court's order.

The trial court denied Lowe's claim of newly discovered evidence as untimely, inadmissible hearsay, and ruled that even if Tomeka's account were timely under the newly discovered evidence standard, her testimony was not reliable and would not "probably" produce a lesser sentence or acquittal as required by Jones. (2PCR 3011-12, 3015). The trial court found the matter time-barred because Lowe failed to show that "Tomeka was unable to be

discovered earlier given she is Blackmon's sister, lived with Blackmon during the 1990s, and in fact recalled talking to the police in 1990." (2PCR 3011). The court found that even though Tomeka came forward in 2023, "there is nothing to suggest that had someone spoken with her previously, she would not have provided these statements." (2PCR 3011).

The court continued its analysis reaching the merits addressing Lowe's assertion that Tomeka's testimony would be admissible at a new trial as both substantive and impeachment evidence. The court agreed that Tomeka would be available and subject to cross examination but that "does not cure the lack of reliability of Blackmon's alleged statements she claims to have overheard." (2PCR 3012). Continuing, the court did not find Blackmon's alleged statements were statements against interest as:

> Lowe has not demonstrated that (1) the confession or statement was made spontaneously to a close acquaintance shortly after the crime occurred; (2) the confession or statement is corroborated by some other evidence in the case; (3) the confession or statement was
>
> self-incriminatory and unquestionably against interest; and (4) if there is any question about the truthfulness of the out-of-court confession or statement, the declarant must be available for cross-examination. (emphasis added)

Chambers v. Mississippi, 410 U.S. 284, 300-01 (1972). (2PCR 3012-13).

The court then assumed arguendo that Tomeka's information could not have been discovered with due diligence and that the claim was timely and the testimony admissible, it still was not reliable based on Tomeka's allegations/account including: (1) her initial reporting that the crime occurred in 1994 or 1995; (2) that Tomeka could not "tell when the incident she was

reporting happened, other than that it was the 'summer;'" (3) initially telling the police she never told anyone of what she heard, but testified in the hearing "she told Ruby Blackmon . . . about what she heard and 'she just got a whooping' and was told it was none of her business;" (4) Tomeka claiming she did not come forward sooner because she feared repercussions/ beatings from Blackmon and Ruby, but Ruby died in 2001 and Blackmon died in 2003 "over twenty years prior;" (5) "identifiable discrepancies with Tomeka's account of the day of the murder" involving: (a) the day of the murder, Monday, when it was a Tuesday murder; (b) the day she left school after music, but there were no music classes in the summer; (c) Tomeka's change in description of the guns she observed between her statements to police in March 2023 to her 2024 in court testimony" and "Tomeka admitted that she 'looked it up [guns] on the internet;' she 'was just looking at guns and they looked silverish black. So I don't know the difference. . . .'" and "admitted that she does not 'really know which kind of gun it really is' so 'I might be confused.'" (6) "Tomeka appeared to selectively recall facts surrounding July 3, 1990," including the cars driven by Lowe and Blackmon, identifying the guns, and that she was picked up after a non-existent music class; and "Tomeka's demeanor consistently changed throughout her in court testimony, vacillating between timid and recalcitrant through confrontational and obstinate." (2PCR 3013-15). The court concluded that the above factors undermine[d] any reliability in Tomeka's testimony and "[g]iven these discrepancies, the Court finds that Tomeka's testimony is unreliable." (2PCR 3015). "The Court does not find that her testimony would 'probably' produce a lesser sentence or an acquittal as required by Jones." (2PCR 3015).

The claim was untimely; no due diligence proven.

Lowe did not carry his burden to show that the claim is timely. Tomeka was Blackmon's sister in 1997-2005 when CCRC-S searched for witnesses and litigated Lowe's ineffectiveness claim for failing to discover witnesses showing Sailor and later Blackmon was Burnell's killer. Tomeka lived with Blackmon in the 1990's, hence, Lowe through his CCRC-S counsel and investigators could have interviewed her and discovered this issue. Their failure to show what efforts were taken and when renders the instant claim time barred. Moreover, as the court concluded, even Tomeka's suggestion that she did not come forward before 2023 because she feared her family was not credible. Blackmon died in 2003 and Ruby died in 2001. Tomeka waited some twenty years to make her report. Lowe offered nothing to show his diligence in 2001 or 2023 to discover Tomeka. The court's finding the claim untimely should be affirmed.

Tomeka's account of Blackmon's alleged statements is inadmissible hearsay.

The court's determination that Blackmon's hearsay statements as reported by Tomeka were inadmissible at a new trial or penalty phase was proper. Blackmon is deceased and would be unavailable to testify. Tomeka's 2023 account of Blackmon's statements do not meet the requirements to admit such hearsay under section 90.804, Fla. Stat. or 90.806, Fla. Stat. *See Sheppard v. State*, 338 So. 3d 803 (Fla 2022); *Lightbourne v. State*, 644 So. 2d 54, 56-57 (Fla. 1994). Not only are Blackmon's alleged statements overheard by Tomeka not credible, they conflict with the other evidence. Furthermore, as explained more fully below, Tomeka's account is

not credible. Together, those factors render Blackmon's alleged statements inadmissible hearsay.

In *Lightbourne*, this Court noted four exceptions to the bar on hearsay testimony under section 90.804 where the declarant is unavailable: (1) former testimony; (2) statement under belief of impending death; (3) statement against interest; and (4) statement of family or personal history. *Lightbourne*, 644 So. 2d at 56–57. Only the "statement against interest exception might apply here as Tomeka alleged that Blackmon admitted the killing to Ruby. That does not end the inquiry though. The out-of-court statement must have indicia of reliability. *Id.* 57.

In *Sheppard*, a witness who had testified against the defendant recanted that testimony to others, then recanted that recantation. Sheppard wanted to call that witness, however, by that time, the witness was deceased. Sheppard argued the recantation was against the witness's penal interest, i.e., perjury. This Court agreed it was against the witness's penal interest, but there must be a finding that the witness's out-of-court statements were reliable. As detailed earlier, a review of Tomeka's testimony shows that Blackmon's alleged statements are not trustworthy nor is Tomeka's account trustworthy regarding how she claims to have heard them. At trial, both Victoria and Patricia testified that Blackmon was home sick in bed on that morning. The State incorporates in "Overview" from Issue I. (RS-ROA-T 1914-18, 1920-32, 1988-93, 2023-24); *See Lowe*, 259 So. 3d at 33.

Chambers does not assist Lowe. In order to admit hearsay testimony under *Chambers*, the defendant must show (1) the confession or statement was made spontaneously to a close acquaintance shortly after the crime

occurred; (2) the confession or statement is corroborated by some other evidence in the case; (3) the confession or statement was self-incriminatory and unquestionably against interest; and (4) if there is any question about the truthfulness of the out-of-court confession or statement, the declarant must be available for cross-examination. *Chambers*, 410 U.S. at 300–01. There is no evidence corroborating Blackmon's alleged statements as recounted by Tomeka. In fact, all the evidence in the case establishes that Blackmon was not at the Nu-Pack on July 3, 1990, and did not kill Burnell. The finding of inadmissible evidence was proper and should be affirmed.

Rejection of the newly discovered evidence claim is supported by credibility findings and competent, substantial evidence.

The court's determination that Tomeka was not credible and that her account would not support an acquittal or lesser sentence on retrial is supported by the record. It is well settled, an appellate court's review does not "reassess the credibility of witnesses or reweigh the evidence. . . . Rather, we limit our review in this respect to whether the circuit court's determinations are supported by legally sufficient evidence. *Hutchinson*, 416 So. 3d at 289; *Calhoun*, 376 So. 3d at 586; *Lambrix*, 39 So. 3d at 268; *Nixon*, 2 So. 3d at 14.

As the court found, Tomeka did not know when the conversations she overheard took place, other than on a Monday in the summer. The fact that she recalled being taken out of summer school before her 9:45 a.m. "music class" was completely refuted by Galvin, who stated the school never had music classes in the summer. Also, Victoria testified that neither she nor Blackmon ever picked Tomeka up from school as they were not on the authorized list. The testimony established that Lowe never drove a pick-up

truck and Blackmon never drove Patricia's small white car. The court saw Tomeka testify live and found her account to be not credible. The court considered Tomeka's demeanor and assessed how her testimony conflicted with the other evidence in the case. The fact that Tomeka was found not credible should end the review as her testimony would not support an acquittal or lesser sentence.

The crime took place on July 3, 1990, and was committed by Lowe by himself as was outlined in Issue I and incorporated here. Tomeka could not provide a consistent description of the gun as to the color or whether it was a revolver or semi-automatic. Her description changed from when she first talked to the police, to after talking with CCRC, and more importantly, after looking up guns on the internet. Tomeka's recitation of what she "overheard" did not specifically identify the Nu-Pack as the target of the robbery,[23] nor did she get the timing of the homicide correct. She said that the crime would best be done at lunchtime, but the evidence irrefutably shows the crime happened between 10:07 and 10:17 a.m. on July 3, 1990. Given all the discrepancies in Tomeka's account, coupled with:

(1) multiple times Victoria and Patricia placed Blackmon home sick in bed at the time of the murder;

(2) Leudtke's testimony that only one-man matching Lowe's description was seen leaving the Nu-Pack in a white car like Patricia's moments after Brunell's murder;

[23]Giving Tomeka the benefit of the doubt that she heard something, this Court will recall that Lowe, Blackmon, and Sailor had planned to rob the Nu-Pack and they in fact cased it twice on June 29th and July 1st. Tomeka may have heard discussion of those events.

(3) Lowe's fingerprints on a warm hamburger wrapper, not a "sandwich";

(4) testimony placing the murder weapon in Lowe's possession before and shortly after the murder; and

(5) Lowe's police statement that it was Sailor, not Blackmon, who committed the shooting.

Tomeka's account would not "probably produce" an acquittal or lesser sentence. This Court should affirm the denial of relief.

ISSUE III – Lowe Received Due Process in His Postconviction Case and the Summary Denial of Relief Was Proper As Those Claims Were Untimely, Legally Insufficient, Procedurally Barred, or Meritless.

Lowe asserts that the summary denial of several of his claims was improper and denied him due process. He also asserts it was error not to have attached portions of the record. The trial court correctly found the claims untimely, legally insufficient, procedurally barred, or meritless. This Court should affirm.

A. The court properly denied Lowe's claims without an evidentiary hearing.

Taking Lowe's argument about record attachments first, this Court has not required record attachment as long as the trial court states its rationale in its decision. *Anderson v. State*, 627 So. 2d 1170, 1171 (Fla. 1993). *See Spencer v. State*, 842 So.2d 52, 69 (Fla. 2003); *McLin v. State*, 827 So.2d 948, 954 (Fla. 2002). *See also*, *Ragsdale v. State*, 720 So. 2d 203, 207 (Fla. 1998) (stating that although courts are encouraged to conduct evidentiary hearings, a summary or conclusory claim "is insufficient to allow the trial court to examine the specific allegations against the record"). Further, this

Court has not barred a court from adopting a parties pleading. *See Patton v. State*, 784 So.2d 380, 388 Fla. 2000) (noting United States Supreme Court has stated that "even when the trial court adopts proposed findings verbatim, the findings are those of the court and may be reversed only if clearly erroneous." (quoting *Anderson v. Bessemer City*, 470 U.S. 564, 572 (1985)); *Pietri v. State*, 885 So. 2d 245, 269 (Fla. 2004) (finding no error where trial court adopted one party's post-hearing memorandum denying postconviction relief). The State's response to the amended motion set forth facts, case law, and records cites which the trial court made its own. There is no error.

With reference to allowing amendments in this case under *Spera v. State*, 971 So.2d 754, 761 (Fla. 2007), this Court will recall that Lowe filed an initial motion in 2020, and the State responded identifying the legal insufficiencies and conclusory nature of certain claims. (2PCR 506-650, 659-717). Lowe's amended motion did not address many of the State's identified pleading failures although Lowe certainly could have and could not have been surprised when the State raised those same defenses in its subsequent response. (2PCR 1011-1129, 1349-1417). The trial court did not strike Lowe's original pleading but allowed him to amend. Once Lowe amended, two years later, and the same deficiencies remained, the court properly addressed the defenses the State raised; another amendment was not required under the law. *Cf. Davis v. State*, 26 So. 3d 519, 527 (Fla. 2009) (recognizing defendant should not be given unlimited opportunities to amend his postconviction motion).

Lowe's pleading failures were not technical failings, but pleading failures such as not identifying Strickland deficiency or prejudice which the State had pointed out in its original response and Lowe did not even attempt to cure. *Spera* does not contemplate endless amendments, especially where the court did not strike the pleading, but addressed the timeliness, legal insufficiency, and procedural bar defenses.

The failure to call Dr. Dudley and a neuropsychologist claim.

In Lowe's original and again in the amended postconviction motion, he admitted that counsel had sought the appointment of Dr. Dudley, but when the Justice Administration Commission objected, counsel asked for local psychologist, Dr. Riebsame. Nonetheless, almost verbatim Lowe asserted in both his original and amended motions that counsel should have called Dr. Dudley based on the doctor's testimony in the original postconviction evidentiary hearing and also called a neuropsychologist. (2PCR 543-46; 1020-22). In its original response, its response to the amended motion, and during the Huff Hearing, the State posited that the claim was legally insufficient because Lowe failed to identify evidence, brain damage,[24] or mitigation that Dr. Dudley would offer that was not presented by Dr. Riebsame. (2PCR 692-95, 1359-62; 3248-52). Lowe did not ask to amend but merely asserted the motion was sufficiently pled. (2PCR 3253-56).

In its written responses, the State outlined Dr. Riebsame's penalty phase testimony which included Lowe's social history, family dynamic, his father's drinking/discipline, and Lowe's mental condition and mild

[24]In fact, Dr. Dudley had testified that he found no evidence of brain damage. (2PCR 695, 1360; 1PCR.20 1192).

depression. (2PCR 692-95, 1360-62). The State relies on its recitation the Lowe's mitigation presentation set out in Issue I and adds that Dr. Riebsame, a psychologist who focused on adolescences, adults and families, testified that he gave Lowe psychological, personality, and intelligence tests (RS-ROA-T.20 2355-63), reviewed Lowe's records, and spoke with family members. (RS-ROA-T.20 2370). The doctor reviewed police reports, a 20-year-old psychological report, medical and corrections records, a Pre-Sentence Investigation report, reports from a psychologist and psychiatrist done in this case, and a private investigator's witness interview reports. (RS-ROA-T.20 2348-49). Lowe has not identified any records reviewed or witnesses spoken to by Dr. Dudley that were not reviewed/talked to by Dr. Riebsame.

Based on Dr. Riebsame's records review, discussions with family members, interview with Lowe, and test results, Dr. Riebsame testified that Lowe was of average intelligence, showed no signs of brain damage, no psychosis, and no insanity. Also, Dr. Riebsame saw no sign of a severe mental disorder, no hallucination/delusions, no reports of any extreme anxiety or depression, no mental illness, no psychopathic personality, and no major personality disorder. (RS-ROA-T.20 2355-56, 2363-64, 2369, 2394-96). While Dr. Riebsame found Lowe had a depressive disorder, it was not a major psychological deficit, and Lowe had no major personality disorder (RS-ROA-T.20 2369). Also, after speaking with Lowe's mother, siblings, and aunt, Dr. Riebsame reported that other than Sherri, Charlie's alcohol use was described as alcoholic-like. (RS-ROA-T.20 2370). The doctor described the

corporal punishment Lowe received from his father as not abusive and that it was not the basis for the murder in this case. (RS-ROA-T.20 2372, 2391).

The State suggested that the court could compare the record testimonies of both doctors and determine whether Dr. Dudley would offer anything of significance different from that of Dr. Dudley which would show deficient performance or undermine confidence in the sentence. The comparison shows that the record refutes Strickland ineffectiveness as counsel considered Dr. Dudley but accepted a local doctor and their testimonies differed little. It appears that the pith of Lowe's claim is that counsel should have called Dr. Dudley, who CCRC-S had called in the 2003-2005[25] evidentiary hearing, not Dr. Riebsame. Such is not a basis for Strickland relief.

With respect to not calling a neuropsychologist, Lowe merely claimed he suffers from neurological trauma and residual deficits of central nervous damage from his childhood that impacted his already impaired judgment as supported by his *Atkins v. Virginia*, 536 U.S. 304, 316 (2002) and *Roper v. Simmons*, 543 U.S. 551, 569 (2005) claim. (2PCR 1022) (see also State's answer to Issue III(A)(10)). The claim pled is legally insufficient as he failed to plead that a neuropsychologist has tested Lowe and has found that neurological damage exists that would establish mitigation.

[25]Lowe began both written claims with "[r]esentencing counsel were not working from scratch" but had Dr. Dudley's postconviction testimony in Lowe's case. Lowe included in both written claims that "counsel ignored the roadmap" or was "ignoring the roadmap" CCRC-S had created by Dr. Dudley's postconviction investigation and testimony. (2PCR 543, 546, 1020, 1022).

Furthermore, in his postconviction testimony, Dr. Dudley stated that he found no evidence of brain damage (1PCR.20 1192). Based on Dr. Dudley's testimony and Dr. Riebsame's review of prior testing and his own findings of no brain damage, counsel had no basis to consider a neuropsychologist. *Connor v. State*, 979 So.2d 852, 868 (Fla. 2007) (noting claim which is "positively refuted from the record" may be denied summarily).

Also, Lowe did not plead Strickland prejudice. Such pleading deficiencies rendered the claim legally insufficient. *See Beasley v. State*, 18 So.3d 473, 484 (Fla. 2009) ("[a]bsent any evidence of what an expert could and would have presented, other than postconviction counsel's argument, Beasley has not established" Strickland prejudice); *Jones v. State*, 928 So. 2d 1178, 1189 (Fla. 2006) (finding claim legally insufficient as pled where defendant made "conclusory allegation that prejudice resulted from trial counsel's failure, without specifying whether a reasonable probability exists that the outcome of the penalty phase would have been different); *Armstrong v. State*, 862 So.2d 705, 712 (Fla. 2003). Conclusory allegations are legally insufficient on their face and may be denied summarily. *Freeman v. State*, 761 So. 2d at 1055, 1061 (Fla. 2000) ("defendant bears the burden of establishing a prima facie case based upon a legally valid claim . . . conclusory allegations are not sufficient. . . .").

Dr. Riebsame testified he reviewed the 1990-91 psychological testing and saw no significant brain impairments; thus, he saw no need to do any further testing for organic brain damage as there was nothing from the time of the crime and he saw no signs of brain damage during his evaluation. There was nothing in the records Dr. Riebsame had to show there had

been any head trauma. (RS-ROA-T.20 2355-56, 2395-96). To this extent, the claim is refuted from the record since counsel had no basis to consider a neuropsychologist; neither Strickland deficiency nor prejudice was plead and shown.

In denying relief on these claims, the trial court reviewed Dr. Dudley's prior testimony and compared it to Dr. Riebsame's presentation. It adopted the State's analysis and citations and denied relief in part because Lowe failed to show prejudice and the pleading was legally insufficient. (2PCR 1543, 2973). The summary denial of the claim was proper and should be affirmed.

The failure to develop accurate life history claim.

Lowe asserts that the summary denial of his Claim I(B) below was improper because the court could not dismiss the claim as cumulative, conclusory, or speculative when the jury heard superficial or inaccurate details about Lowe's life. The entirety of the appellate claim is that counsel failed to find and present a "wealth of mitigating evidence" of "Lowe's home life and upbringing. . . . Lowe suffered sexual abuse, religious alienation, head trauma, emotional neglect, and racial trauma;" and the "jury heard none of the compelling details with respect to these topics or their impact on his functioning and development." (IB 121).

In his original and amended motions, Lowe asserted counsel failed to present an accurate social history (2PCR 547-58 1022-30). Other than including history on Lowe's grandparents and parents before he was born, he did not identify any specific evidence counsel or his expert did not know but should have presented. Instead, Lowe set forth his history. (2PCR 1022-30).

In its responses, the State showed the minor differences between the 2011 mitigation case and that suggested in Lowe's 2022 Rule 3.851 motion. (2PCR 698-706, 1367-77). The court agreed with the State, adopted its reasoning and record citations, and summarily denied the claim "due in part, to the claim being refuted from the record, cumulative, meritless, and legally insufficient." (2PCR 1544, 2974-75). That record supports that decision.

Lowe now limits his challenge to five of the original eight areas, however, his appellate argument is conclusory; it does not present argument beyond identifying the mitigation he claims counsel failed to find. Lowe does not discuss the evidence that was presented contrasted with the mitigation Lowe claims should have been presented and how Strickland deficiency and prejudice resulted. This failure shows the claim was insufficiently pled, and in large ppart refuted from the record the trail and proposed mitigation are compared. The trial court correctly found that Lowe did not prove Strickland ineffectiveness and that ruling should be affirmed. As this Court announced in *Duest v. Dugger*, 555 So. 2d 849, 852 (Fla.1990), "[t]he purpose of an appellate brief is to present arguments in support of the points on appeal. Merely making reference to arguments below without further elucidation does not suffice to preserve issues, and these claims are deemed to have been waived." Lowe's claim here should be deemed waived. *See Kearse v. State*, 969 So. 2d 976, 990 (Fla. 2007) (finding appellate claim waived where it did not offer any argument on the specific issue raised); *Cooper v. State*, 856 So.2d 969, 977 n. 7 (Fla. 2003) (rejecting claim because the appellant chose "to contest the trial court's summary denial of various claims, by contending, without specific reference or supportive argument, that the

'lower court erred in its summary denial of these claims.' We find speculative, unsupported argument of this type to be improper, and deny relief based thereon."); *Roberts v. State*, 568 So.2d 1255 (Fla. 1990). While the claim should be deemed waived, the State presents the following argument in support of the summary denial.

Sexual abuse.

In his original motion, Lowe asserted he was sexually abused as a child by babysitters and an older cousin. The State asserted the claim was legally insufficient because Lowe offered "no names, addresses, timeframes, or who [was] reporting this information thirty years after the murder." (2PCR 551, 701). Two years later, Lowe filed the same allegation in his amended motion, and the State cited the same legal insufficiency. (1025, 1371). Further, the State noted Dr. Dudley, who Lowe asserted was the expert with an accurate picture of Lowe's history and should have been called in the resentencing, testified in 2003 that Lowe had no sexual experiences before adolescence (1PCR.20 1207). Lowe did not explain the contradictory pleading which refutes the allegation of sexual abuse at age five.

Religious alienation.

Lowe alleged in the amended motion that counsel should have presented evidence that Lowe's siblings felt alienated and embarrassed by the family's Jehovah's Witness faith and having to proselytize on the weekends. (2PCR 1027). The record showed that Dr. Riebsame informed the jury of Lowe's feelings regarding his Jehovah's Witness proselytizing and that it was a source of humiliation and embarrassment for Lowe. The record also showed that when Lowe misbehaved, the congregation shunned

- alienated him. (2ROA-T-RS-20 2371-72). Lowe's mother discussed the demands of the Jehovah Witness faith and week-end door-to-door proselytizing, how Lowe started to rebel as he entered his mid-teens years, and faced peer pressure based on his religion. (2ROA-T-RS-19 2305-06, 2309). Taking Dr. Riebsame and Sherri Lowe's testimony together, the record refutes the assertion that the jury did not know of the "religious alienation." (2PCR 1374).

Head trauma.

The State responded to the original claim of counsel's failure to discover Lowe suffered head trauma asserting it was conclusory. (2PCR 551, 701-02). The legal insufficiency arose because Lowe made no attempt to state how a bike accident requiring stiches when he was a third grader or other alleged concussions playing football were mitigating; failed to plead what effects the alleged injuries had on his life or mental condition;[26] and offered no Strickland analysis. Conclusory allegations are legally insufficient on their face and may be denied summarily. *Freeman*, 761 So. 2d at 1061 (finding conclusory allegations are insufficient to establish a prima facie case based upon a legally valid claim). When this claim was raised in the amended motion, the State noted the same pleading deficiencies which the court adopted. (2PCR 1543-44). Such ruling is supported by the record.

[26]This Court will recall that Dr. Riebsame's review of the records which included 1990/1991 test which showed Lowe had no brain damage. Also, the doctor found no psychosis, no periods of insanity, and Lowe was of average intelligence. (RS-ROA-T.20 2355, 2363-64, 2395).

Emotional neglect.

Lowe does not cite to the record where he alleged "emotional neglect" in Claim I9B) below. The record shows that the term "emotional neglect" was used in his motion to supplement sub-claim 9(C) and in his post-hearing memorandum arguing that Daniels should have been called. (2PCR 1586, 2891). The State relies on its argument in Issue I regarding counsel's strategy not to call Daniels. Further, if Lowe is referring to the corporal punishment he suffered from his father and the alienation he experienced because of his religion, the State reincorporates its analysis in Issue I respecting Daniels and its answer in Issue III-A for not calling Dr. Dudley. The State reincorporates and relies upon Dr. Riebasame's testimony outlining Lowe's home life to show any claim of "emotional neglect" was covered by Dr. Reibsame how related to the jury: (1) Charlie Lowe's disappointment in his son; (2) Lowe lack of a positive male role-model; (3) the corporal punishment inflicted and Lowe running from his father; (4) Charlie's alcohol use; and (5) the impact of the Jehovah's Witness faith and Lowe's feeling of alienation. (RS-ROA 2352-54, 2370-75). Together, the jury understood the alienation Lowe experienced rendering the claim refuted from the record. Nonetheless, Lowe has not offered a Strickland analysis, thus, rendering his claim waived under Duest as noted above.

Racial trauma.

In both his motions, Lowe claimed structural racism. (2PCR 556, 1029). The State responded that the claim was conclusory, and reiterated it in its response to the amended motion when Lowe made no attempt to address the deficiencies the State noted. (2PCR 705, 1375). Lowe's alleged

racism experience was based on a disparity of punishment where he was expelled after an angry exchange with a driver's education teacher, stole the teacher's car, broke school windows, and made long-distance telephone calls while a white student was suspended for selling drugs in school. He did not assert he personal experienced racism. Moreover, he did not explain what effect the alleged racism had on him or how the result of his sentence would have been different had the jury heard that a white student was not expelled, but merely suspended, for selling drugs. Lowe still has not put this allegation in the context of a Strickland claim and assessed it in light of the strong aggravation in this case. The summary denial was proper.

The failure to call the 1991 lay witnesses.

Lowe claims counsel should have called the nine 1991 lay witnesses and it was error to deny him an evidentiary hearing. As answered in Issue I(B), the court held a hearing on this claim with respect to Daniels and assessed counsel's effectiveness not only on failure to call Daniels, but on the other eight 1991 lay witnesses. The State relies on its answer to the Strickland analysis in Issue I. Lowe appears to argue he should have been able to call the eight additional witness to testify live so the court could assess their testimonies together. However, the issue was whether counsel should have called those witnesses when their testimonies were already in the record and could be assessed against the witnesses and mitigation presentation Garland and Smith presented. When given an opportunity to amend, with the exception of Ms. Brandes[27] and Daniels, Lowe did not assert

[27]All Lowe attributed to Brandes that was new was that she thought him sweet and he helped her once when she was pregnant. This testimony,

that the testimony would be different, only that the eight witnesses should have been called. (2PCR 1580-88). As such, the court properly assessed counsel's decision on those eight witnesses based on the record their record testimony from 1991. Lowe has not pointed to a case requiring a court to take new testimony in a postconviction hearing where the prior testimony, which was the subject of the complaint, was a matter of record and the court could assess whether it was cumulative to the presentation counsel made.

Counsel does not render ineffective assistance by not placing before the jury cumulative evidence. *Rutherford*, 727 So. 2d at 225 (finding additional evidence offered at postconviction evidentiary hearing was cumulative to that presented during penalty phase, thus, claim was denied properly); *Van Poyck*, 694 So. 2d at 692-94 (finding defendant failed to prove ineffective assistance where the life-history account argued for in postconviction litigation was, in large measure, presented to the jury). This Court should affirm.

The fingerprint evidence claim.

Lowe asserts he presented a legally sufficient claim that counsel was ineffective for not challenging the State's fingerprint expert. Lowe alleged below that defense counsel should have hired his own expert to review

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even taking it as true, surely would not undermined confidence in this four aggravator case which included under sentence of imprisonment, prior violent felony, and avoid arrest. *See Tompkins v. Dugger*, 549 So.2d 1370, 1373 (Fla. 1989) (finding no Strickland prejudice in failure to present additional evidence of abused childhood and drug and alcohol addiction where such evidence, even if admitted, would not have affected outcome of penalty phase as it would have been outweighed by the three aggravating circumstances).

the work of the State's expert and re-educate the jury of changes in the scientific community's consensus on fingerprint reliability. The court adopted the State's position that the claim was legally insufficient for failing to allege that the fingerprint results were incorrect and failing to explain how Lowe was prejudiced. (2PCR 1384-87, 1545). Conclusory allegations are legally insufficient on their face and may be denied summarily. *Freeman*, 761 So. 2d at 1061 ("defendant bears the burden of establishing a prima facie case based upon a legally valid claim. Mere conclusory allegations are not sufficient to meet this burden.").

In response to Lowe's original motion asserting a Strickland claim for not challenging the fingerprint results, the State argued in part that Lowe's claim was conclusory for not even alleging that the results were incorrect and referenced latent print expert Deborah Sellery's penalty phase testimony. (2PCR 573-75, 713-15; RS-ROA-T.18 2132-34). Two years later, Lowe filed the same claim and, again, never alleged that the State's expert who found eighteen and twenty-one points of comparison with Lowe's prints was incorrect. (2PCR 1044-46, 1384-87) Further given that Sellery admitted there was no set number of points required for an identification, the allegation that a defense latent print expert was needed to re-educate the jury is refuted from the record as Sellery essentially admitted to what Lowe represents was the "new consensus." Additionally, on cross counsel elicited on cross that Sellery could not say when Lowe's prints were left on the hamburger wrapper. (2RS-ROA-T.18 2135). *See Connor v. State*, 979 So.2d 852, 868 (Fla. 2007) (noting claim which is "positively refuted from the record" may be denied summarily). The parties voiced their same respective position during

the Huff hearing. Lowe had no response to the State's position that he had not pled that he had an expert to state that Sellery's results were incorrect and Lowe did not seek to amend. (2PCR 3287-92).

The Court's order (2PCR 1545, 2975) that the claim was legally insufficient is supported by the record. Further, the summary denial was proper because counsel clearly cannot be ineffective for not challenging a correctly identified fingerprint and no prejudice could be shown. This Court should affirm.

The Carl Dordelman claim.

In the resentencing, Carle Dordelman, a Vietnam veteran, testified among other things that Lowe asked him if he had killed anyone and when Dordelman inquired why Lowe was interested, Lowe stated that he "just wanted to know what it would be like." (RS-ROA-T.16 1861). In postconviction, Lowe claimed it was ineffective not to challenge Dordelman on why he did not reveal this statement earlier. (2PCR 577-78, 1047). The State asserted in both its responses and during the Huff hearing that Lowe failed to posit that Dordelman's statement was inaccurate or identify a valid meritorious objection penalty phase counsel could have raised. (2PCR 1046-47, 1387, 3292-94). Lowe's only response was that counsel should have impeached him as it was not included in his 1991 trial testimony. However, Lowe also did not make a prejudice argument addressing the facts of the crime and the heavily aggravated factors found here or allege how any impeachment would be of such significance that confidence in the sentencing would be undermined. This too is a basis for finding the Strickland claim conclusory and properly denied. Moreover, even if counsel should

have crossed Dordelman on that point, it does not undermine confidence in the sentence. The jury unanimously recommended death where the State proved five aggravators, merged to four based on the evidence referenced in the State's "Overview" in Issue I. Whether or not Dordelman reported Lowe's statement does not reduce the overwhelming evidence the Lowe acted alone for pecuniary gain while on community control from a prior violent felony conviction and killed to avoid arrest. Lowe has not shown that even absent Dordelman's statement, the death sentence would not have been imposed. This Court should affirm.

The Strickland claim on the avoid arrest aggravator.

Below, Lowe claims counsel was ineffective in failing to challenge the avoid arrest aggravator by pointing to Burnell's responses to Officer Ewert and that it was trial court error to find the avoid arrest aggravator. (2PCR 1047, 1050). In denying relief, the court adopted the State's argument that the Strickland claim was meritless and any claim of trial court error in finding the aggravator was procedurally barred. (2PCR 1387-90). The denial was proper.

Ewert testified that Burnell was incoherent after being shot three times including once in the head. After he cleared her airway to make her a little more comfortable, she kept saying "no no, no" in an incoherent manner. He found her nonresponsive. (RS-ROA-T.13 1371). Counsel cannot be deemed deficient for not asking Ewert what questions he asked Burnell to which she gave incoherent responses. Clearly, if Burnell is incoherent, it matters not what was asked as the responses would have no substantive meaning. The jury knew Burnell was incoherent; the questions posed to her neither

undermine confidence in the State's theory nor establish a basis to challenge the aggravator. Deficient performance was not shown.

Even assuming Burnell did not know Lowe, such does not undermine the State's theory that Lowe acted alone or that he killed to avoid arrest. The State relies on its "Overview" from Issue I as record proof of Lowe being the sole perpetrator and Lowe admitted he knew Burnell. (2ROA-T-RS-14 1572-73, 1576-78). It matters not whether she recognized him; the focus is on what Lowe did and why he did it. *Lowe*, 259 So.3d at 60 (agreeing "circumstantial evidence relied on by the trial court is related to and consistent with the theory that Lowe's sole or dominant motivation for the murder was witness elimination" which included evidence that Lowe knew Burnell, that he was on community control at the time and would return to prison, and the lack of a struggle").

Lowe cannot establish deficient performance from the failure to elicit Burnell's incoherent responses to questions posed to her. Such immaterial information does not undermine confidence in Lowe's guilt, motivation for the killing, or sentencing. Similarly, prejudice was not shown as Lowe confessed he knew Burnell and the evidence shows his motivation was to avoid arrest. *Id.* at 60-61. Lowe has failed to prove ineffective assistance under Strickland.

Lowe also argued that "the court improperly determined" the avoid arrest aggravator was established and that the aggravator was applied "overbroadly and in an arbitrary fashion," which failed to narrow the class of persons eligible to the capital sentence. (2PCR 1050). That claim, as pled, was procedurally barred as it could have been raised on direct appeal and when challenged on direct appeal, this Court denied relief. Claims of trial

court error are procedurally barred in postconviction review. *Muhammad v. State*, 603 So. 2d 488, 489 (Fla. 1992); *Spencer v. State*, 842 So. 2d 52, 60-61 (Fla. 2003).

The State's reference to Lowe's prior sentence, and discussion of sentencing options of life without parole for twenty-five years or death claim.

For the first time in the amended motion, Lowe asserted counsel was ineffective for: (i) not objecting to the State referencing Lowe's prior death sentence and (ii) not objecting to testimony regarding Lowe's parole likelihood and consecutive fifteen-year sentence for robbery. Lowe raised these issues for the first time two-years after his original motion and more than three years after the denial of certiorari by the United States Supreme Court rendering the claims time barred under Rule 3.851(d)(1) and in violation of Rule 3.851(f)(4), Lowe failed to present good cause for adding this claim. The basis for the claim was found on the face of the appellate record. Allowing an amendment to add such claims effectively expands the Rule 3.851(d) time limits without showing a valid basis to do so; no good cause was shown. While Lowe was permitted an opportunity to amend, that was to amend the claims he had pled originally, not to add new claims that were based on record evidence since 2012 and existed at the time of the original 2020 filing. Further, the challenge to the State's closing argument referencing Lowe's prior death sentence was raised on appeal and rejected with a finding that no fundamental error was shown, thus, the claims raised below were procedurally barred. The claim counsel should have "more effectively" argued against the motion in limine precluding challenge to Lowe's parole likelihood and consecutive robbery sentence was legally

insufficient as pled. The trial court found the claim raised in the amended motion untimely and denied relief properly. (2PCR 1546). If the court should not have applied a time bar, the claim was insufficiently pled and meritless.

Referencing length of time Lowe had served by 2011.

Lowe merely asserted below and on appeal that counsel "failed to effectively litigate these issues and to object to the State's repeated reference to the length of time Lowe had already served. . . ." (IB 113). Lowe does not offer what objection counsel could have been asserted as it was Lowe who first told the jury that he had been on death row for twenty years in support of his argument that he was a model inmate, who would do well in an open prison setting, and was not dangerous. (RS-ROA-T.18 2191-98, 2202-03, 2228-43). Because the fact Lowe had been on death row for twenty years was presented first by the defense, it was incumbent upon Lowe on postconviction to offer what objection could have been made when the State referenced that fact in closing. Having failed to do that rendered the claim legally insufficient. *Ragsdale*, 720 So. 2d at 207 (summary/conclusory claim "is insufficient to allow the trial court to examine the specific allegations against the record").

On direct appeal, Lowe "argue[d] the State impermissibly argued to the jury that he had been sentenced to death before and should be again because nothing had changed since then." *Lowe*, 259 So. 3d at 48. This Court acknowledged Lowe had not made a contemporary objection then concluded the State's reference did not amount to fundamental error because before the State's closing, defense witnesses told the jury of Lowe's prior death row status/housing. *Lowe*, 259 So. 3d at 48. Further,

that information was not made a feature of the State's case and it was not so prejudicial or inflammatory to require a new sentencing. *Id.* at 48-49. Because "no fundamental error" existed Strickland prejudice cannot be shown and relief should be denied. *See Braddy v. State*, 219 So. 3d 803, 823 (Fla. 2017) (finding a prior direct appeal conclusion that a unpreserved error did not amount to fundamental error precluded a finding of Strickland prejudice on a postconviction claim); *White v. State*, 559 So.2d 1097, 1099-1100 (Fla. 1990) (same); *Teffeteller*, 734 So.2d at 1019 (Fla. 1988) (same).

Admissibility of testimony on "likelihood of parole" and effect of fifteen-year consecutive sentence for attempted robbery.

The sub-claim was legally insufficient as pled below and procedurally barred. Lowe argued that counsel did not "effectively argue" against the State's motion in limine regarding "likelihood of parole" and for permitting reference to Lowe's fifteen-year consecutive sentence. (2PCR 1055). That argument was conclusory and speculative. Lowe did not identify a valid objection or cogent argument counsel could have asserted – and he could not because that trial court's ruling followed and applied the law properly. In fact, on appeal, this Court rejected Lowe's argument:

> argues that because the jury was told he would be credited for time served and because he was precluded from discussing the improbability of his release on parole and from mentioning his fifteen-year consecutive sentence for attempted robbery, the jury was misled as to the effect of a life sentence without the possibility of parole for twenty-five years. *Lowe*, 259 So. 3d at 55. This Court noted that the "judge informed the jury of the two sentencing options" and "repeatedly explained that the jury was to base its decision only on the evidence and the jury instructions." *Id.* at 56. Relying on *Armstrong v. State*, 73 So.3d

> 155, 173-74 (Fla. 2011) and *Green v. State*, 907 So.2d 489, 496-99 (Fla. 2005), this Court determined Lowe failed to show trial court error. *Lowe*, 259 So. 3d at 56. This Court also rejected Lowe's reliance on *Hitchcock v. State*, 673 So. 2d 859, 863 (Fla. 1996) in his challenge to the instructions and the State's argument in support of a capital sentence. *Lowe*, 259 So. 3d at 56 (finding State "never argued or suggested" Lowe should receive death "because he would otherwise soon be eligible for parole;" there is no record support for a claim the State argued Lowe would be dangerous in future; and the State did not rely on Lowe's prior death sentence to resentence him to death). Where the instructions were proper, counsel cannot be faulted for not arguing more "effectively" in the defendant's favor. Counsel is not deficient or ineffective for failing to prevail on a meritless claim.[28] *Teffeteller*, 734 So. 2d at 1020.

Dr. Riebsame and future dangerousness testimony.

Below, Lowe asserts counsel failed to prepare his mental health expert properly, resulting in a discovery violation, and Strickland prejudice because the jury was deprived of Lowe's result on the Violence Risk Appraisal Guide ("VRAG") that he had an insubstantial risk of reoffending. (2PCR 1058-63). The court recognized the appellate record showed Dr. Riebsame, "for reasons unknown," conducted additional testing using the VARG after he was deposed by the State, surprising even defense counsel. (2PCR 2978). The trial court found the claim untimely because it was not raised in the original motion and Lowe failed to show good cause. Also, the court found the claim legally insufficient as Lowe did not identify what preparation counsel

[28]Lowe references his calculations as to the time he would be eligible for parole to show prejudice. (IB 138-39). However, those calculations do not come into play here because this Court found that the jury was instructed properly on what it could consider in sentencing Lowe and that a consecutive sentence is not considered relative to parole eligibility. *See Lowe*, 259 So. 3d at 55-56; *Armstrong*; *Green*.

should have performed “and what VARG statistics his counsel should have been prepared to offer at trial to better establish the already proven mitigator that Lowe had a minimal risk of a violent offense in the future.” (2PCR 2978) (emphasis in original) The court also found Lowe’s argument that the statistic would have persuaded the jury to give the mitigator more weight was “speculative, conclusory, and cumulative.” Also, the court found no Strickland prejudice was established based on *Lowe*, 259 So. 3d 46-47 (finding jury was informed of Dr. Riebsam’s determination Loew had low risk of future dangerousness based on the use of a statistical model and that the sentencing judge found the mitigator). (2PCR 2979). Finally, the court found counsel was not deficient given his reliance on his expert. (2PCR 2979).

Exclusion of VRAG testimony claim was untimely

The basis of this claim, the exclusion of the VRAG results, was clear from the appellate record and should have been raised in the original 2020 pleading. Lowe failed to present good cause for adding this claim in violation of Rule 3.851(f)(4) two years after the original motion was filed. Allowing an amendment under those circumstances effectively expands the Rule 3.851(d) time limits without showing a valid basis. Having failed to offer good cause the claim was properly found untimely.

The court’s alternate rulings have record support.

Counsel provided Dr. Riebsame with the materials he needed to evaluate Lowe and render an opinion, and the doctor produced a report and sat for a deposition. It was after that and during the month before trial that Dr. Riebsame, without telling counsel of his plans or the eventual results,

conducted additional VRAG testing testing/evaluation and did not disclose this to defense counsel until the day he testified.[29]

The claim was legally insufficient because Lowe did not present the VRAG statistics he suggests counsel should have been prepared to offer at trial to better establish the mitigator. Other than implying that testimony about these statistics would have swayed the jury, even though the doctor's ultimate conclusion was provided the jury, and the mitigator found, Lowe did not explained how exclusion of the statistics undermines confidence in the sentence.

Lowe blames counsel for Dr. Riebsame's failure to disclose to counsel that he conducted additional testing/investigation after he had written his report and sat for a deposition by the State. It is not deficient performance for counsel to rely on the report and deposition of his expert. The fact that additional testing was done without counsel's knowledge and not disclosed by the doctor until trial is not a deficiency by defense counsel. *Cf. See Rompilla v. Beard*, 545 U.S. 374, 383 (2005) (noting "duty to investigate does not force defense lawyers to scour the globe on the off chance something will turn up; reasonably diligent counsel may draw a line when they have good reason to think further investigation would be a waste."). Counsel is not deficient for relying on the reports and deposition of his expert. *Wyatt v. State*, 71 So. 3d 86, 110 (Fla. 2011) (recognizing "defense counsel is entitled to rely on the evaluations conducted by qualified mental health experts, even if, in

[29]As this Court recognized, "[f]or unexplained reasons" Dr. Riebsame performed the statistical analysis for the VRAG during the month between his deposition and his trial testimony *Lowe*, 259 So. 3d at 45, n. 12.

retrospect, those evaluations may not have been as complete as others may desire.") *See also Reese v. State*, 14 So.3d 913, 918 (Fla. 2009); *Darling v. State*, 966 So.2d 366, 377–78 (Fla. 2007).

It was only after Dr. Riebsame produced his written report and gave a deposition that he, sua sponte, conducted further testing and did not disclose it to counsel until trial. In spite of the late disclosure, the defense was able to present sufficient evidence to show Lowe had a low risk of future dangerousness and obtained the mitigator. In discussing the propriety of the discovery violation this Court recognized that Dr. Riebsame was permitted to discuss his findings on his "risk assessment regarding the likelihood or absence of Lowe's future violence" and that the doctor discussed the various risk factors and his ultimate conclusion that Lowe presented a "minimal risk of a violent offense" if in custody and even a lower risk since Lowe was forty years old and had no severe mental health disorder. *Lowe*, 259 So. 3d at 44–45. Given this Court's appellate findings, Lowe cannot establish that the actual presentation of the statistical calculations would have caused the jury to recommend life or for the trial court to give more weight to the future dangerousness mitigator. Further, given the very strong aggravation in this case, *Lowe*, 259 So. 3d at 35, n. 7 without even considering the "avoid arrest" aggravator, Lowe does not explain, nor is he able to show that a fuller explanation of the statistics underlying the VRAG undermines confidence in the sentence as required by Strickland and determined by the trial court. Relief was denied properly and should be affirmed.

Juror misconduct claim.

Lowe asserts it was error to find his claim of juror misconduct untimely for not having raised it in the original motion. He also maintains that he did not have the juror questionnaires until he received resentencing counsel's files and that he presented a legally sufficient claim that required an evidentiary hearing. The State disagrees. The trail court's rulings, adopting the State's argument (2PCR 2980-81, 3087-88, 3097-3101), are supported by the record and this Court should affirm.

Claiming juror misconduct, Lowe pointed to four jurors; three of whom, Kristine Burr, Kimberly Storfer, and Aaron Gunter, Lowe alleged gave dishonest or incomplete answers on their questionnaires and/or voir dire and one, Linda Liss he claimed was sleeping during the trial. As the trial court found, the claim was untimely and Lowe did not show good cause to add this new claim to his amended motion under Rule 3.851(f)(4). Allowing the claim to go forward improperly expands the one-year time limitation for Rule 3.851 motions. Moreover, in 2020, Lowe had exclusive possession[30] of the juror questionnaires, had the appellate record, and access to the clerk of court system to make his allegations of juror misconduct and the allegation Juror Liss was sleep was clear from the face of the appellate record. Lowe's

[30]As Lowe admitted that during the direct appeal, an attempt was made to find the questionnaires and make them part of the record. Testimony was taken and the Clerk of Court, defense counsel, Jeff Smith, and the State, averred that copies of the questionnaires did not exist. (RS-ROA-R.21 2). As this Court will recall, Garland also represented Lowe and Lowe admitted in postconviction that he obtained the questionnaires from files received from resentencing counsel. Only Lowe had the ability to review these materials as they were in his exclusive possession.

failure to include the juror claim in his 2020 motion rendered it time barred in 2022. Further, Lowe's reliance on Covid-19 for his failure is not well taken. Governor DeSantis opened the State in August 2020. Notwithstanding this, Lowe had access to the internet and the Comprehensive Case Information System ("CCIS") to search for any civil or criminal cases the jurors may have had. Covid-19 certainly did not hamper such a search since CCRC-S's January 14, 2019, appointment in this case. This Court should affirm the finding of untimeliness.

Additionally, Lowe's claim below of trial court error regarding Liss is procedurally barred. *Knight v. State*, 211 So. 3d 1, 13–14 (Fla. 2016); *State v. Coney*, 845 So.2d 120, 137 (Fla. 2003). When the allegation was made during the trial, the judge offered counsel the opportunity to question the juror, but counsel declined for strategic reasons and that the judge instructed the jury if anyone feels sleepy or wants a break, he/her just as to ask. (RS-ROA-T.14 1545-48).

With respect to the juror misconduct based on the juror questionnaires, the claim pled below was legally insufficient under where Lowe was required to plead: (1) that a juror failed to answer honestly a material question, i.e., one that has a "natural tendency" to influence the determination of whether the juror is biased against the defendant, but a mistaken but honest answer will not support relief and (2) there is prejudice, meaning a correct response would have established a "valid basis for a challenge for cause," one that would have prevented service as an impartial juror. *Martin v. State*, 322 So. 3d 25 34-36, n.8 (Fla. 2021) and *Boyd v. State*, 200 So. 3d 685, 694-97 (Fla. 2015); *McDonough Power Equip., Inc. v. Greenwood*, 464 U.S. 548,

556 (1984).[31] Lowe never asserted "actual bias against the defendant" as required by *Martin*.

Misdemeanor convictions do not disqualify a person from jury service. *See* § 40.013, Fla. Stat. (2011); *Boyd*, 200 So. 3d at 695 Likewise, a bankruptcy, contract dispute, a divorce, or garnishment, do not disqualify a juror from serving, and although undisclosed, do not establish "actual bias against the defendant" as required by *Martin*. Both the misdemeanor and other actions at best might give counsel a basis for a peremptory challenge, but not a "for cause challenge", thus, Lowe did not plead and cannot show an "actually biased juror" sat on his jury. As *McDonough* explained, a litigant is entitled to a fair trial, but not a perfect one and "it ill serves" the important value of finality to wipe the slate clean based simply on an un-exercised peremptory challenge. *McDonough*, 464 U.S. at 553. The *McDonough* plurality held the party must show that the juror's honest answer "would have provided a valid basis for a challenge for cause." *McDonough*, 464 U.S. at 556.

The criminal and civil case inaccuracies Lowe claims were undisclosed were readily available by a quick computer search via the CCIS or a related search engine. The jurors' voir dire responses were clear on the face of the record and Lowe had exclusive ability during this litigation to check

[31] In *McDonough*, the Supreme Court addressed a juror misconduct claim and held that "to obtain a new trial in such a situation, a party must first demonstrate that a juror failed to answer honestly a material question on voir dire, and then further show that a correct response would have provided a valid basis for a challenge for cause." *McDonough*, 464 U.S. at 556." *Martin*, 322 So. 3d at 47 n. 8.

those answers against the jurors' questionnaires which he alone had from trial defense counsel's file. (IB150). Given Lowe's exclusive possession, the claim is procedurally barred as the information, available via the CCIS system or a related system, was also available at the time of trial. The motion for juror interviews could have been made within ten-days of the verdict and raised on direct appeal under Florida Rule of Criminal Procedure 3.575. The undisclosed information was available, whereas in *Martin*, a capital case, the undisclosed facts that the juror had a juvenile adjudication and that his grandmother had killed his grandfather were not matters easily discovered, as the State had conceded, thus, leading to the decision that claim was not procedurally barred. *Martin*, 322 So. 3d at 33-34. Most of the information was available by a CCIS search in Florida, specifically in the counties of the Nineteenth Judicial Circuit and adjacent Palm Beach County. Hence, *Diaz v. State*, 132 So. 3d 93, 104-06 (Fla. 2013) controls and the matter is procedurally barred, and the summary denial was proper. *See Martin*, 322 So. 3d at 33.

For these same reasons, *Diaz* supports the denial of Lowe's request for juror interviews under Rule 3.575. Additionally, post-trial juror interviews should be granted rarely and the sanctity of the jury process, as well as the privacy rights of the jurors themselves, should be closely guarded and protected. *Children's Medical Center, P.A. v. Kim*, 221 So. 3d 664 (Fla. 4th DCA 2017); *Sterling v. Feldbaum*, 980 So. 2d 596 (Fla. 4th DCA 2008). In fact, there has been a prohibition on interviewing jurors regarding their verdict since common law era. *Vaise v. Delaval*, 1 T.R. 11, 99 Eng. Rep. 944 (K.B. 1785). *See also*, *McDonald v. Pless*, 238 U.S.264 (1915). The

only cases the United States Supreme Court has concluded were “extreme” enough to warrant an exception being made to the no-impeachment rule involved allegations of racial or ethnic bias and both those cases were on direct appeal. *Pena-Rodriguez v. Colorado*, 137 S.Ct. 855 (2017) (carving a narrow exception in the non-impeachment rule for claims of juror misconduct based on racial bias based).

Florida has a statutory prohibition on juror’s testifying about their service to impeach the verdict. The statute, section 90.607(b), Fla. Stat., like the federal system, juror interviews may be considered where there has been a showing of an overt act such as an “express agreement between two or more jurors to disregard their oaths and instructions” that may involve agreements “to decide the case by aggregation and average, by lot, by game or chance, by any other artifice or improper manner, or by a simple overt agreement to ignore the law and the court’s instructions;” and “receipt by jurors of prejudicial non record information.” *Baptist Hosp. of Miami, Inc. v. Maler*, 579 So. 2d 97, 100-01 (Fla. 1991). *See also*, *Marshall v. State*, 854 So. 2d 1235, 1240 (Fla. 2003) (finding allegations of racial bias by jury was overt act subject to juror interviews); *Devoney v. State*, 717 So. 2d 501, 502 (Fla. 1998) (describing in direct appeal context, the matters that may be inquired into as: that a juror was improperly approached by a party, his agent, or attorney; that witnesses or others conversed as to the facts or merits of the cause, out of court and in the presence of jurors; that the verdict was determined by aggregation and average or by lot, or game of chance or other artifice or improper manner). Lowe made no such allegations, thus, the court correctly denied juror interviews.

Below, Lowe also argued in the alternative that "[t]o the extent resentencing counsel failed to uncover" the juror misconduct "information, counsel was ineffective." (2PCR 1068 n. 43). It is unclear from this brief if he is maintaining that position, but the State includes it to be thorough. A claim of ineffective assistance in this context is governed by *Carratelli v. State*, 961 So. 2d 312, 324 (Fla. 2007). Again, the claim was insufficiently pled as conclusory allegations are legally insufficient on their face and may be denied summarily. *Freeman*, 761 So. 2d at 1061 (opining "defendant bears the burden of establishing a prima facie case based upon a legally valid claim. Mere conclusory allegations are not sufficient to meet this burden."). Furthermore, even if counsel should have discovered this litigation, it does not amount to a cause challenge and, therefore, McDonough "bias against Lowe" has not been shown. The trial court's ruling should be affirmed.

Lowe's sentence is constitutional under Roper.

Relying on *Roper v. Simmons*, 543 U.S. 551, 569 (2005), and pointing to a new "consensus" to bar those under twenty-one at the time of the crime from execution, Lowe asserts his sentence is unconstitutional. Lowe claims that it was error for the court to find his claim procedurally barred and meritless (2PCR 2982). An expansion of *Roper* and *Atkins* to those over eighteen but under twenty-one with or without mental infirmities less than intellectual disability has been rejected repeatedly. *See Kearse v. State*, 428 So. 3d 75, 84–85 (Fla. 2026), *cert. denied*, 146 S. Ct. 1786 (2026); *Gudinas v. State*, 412 So. 3d 701, 709 (Fla. 2025), *cert. denied*, 145 S. Ct. 2833 (2025); *Barwick v. State*, 361 So. 3d 785, 795 (Fla. 2023). Lowe has offered nothing to overcome that precedent.

B. Lowe has not shown the court's evidentiary rulings were an abuse of discretion; Lowe had notice and an opportunity to be heard and received Due Process.

Lowe asserts that the court made inconsistent evidentiary rulings, therefore, he was denied due process. What is missing from this claim is argument that the individual rulings were an abuse of discretion. Hence, Lowe has not shown error or a due process violation, and relief should be denied.

Lowe asks this Court to find a due process violation arising from perceived inconsistent evidentiary rulings where: (1) the State was permitted to re-present its entire case; (2) the State was permitted to elicit testimony about the rebuttal evidence that the prosecutor had in the event John Unruh was called to discuss Blackmon's affidavit; (3) the State was permitted to inquire of defense counsel the existence of Lowe's fingerprints on a warm hamburger wrapper; (4) the court sustained hearsay objections but permitted proffers of McQuade's and Woulard's testimonies, yet, allowed defense witness Stinton to testify without a proffer; (5) Tomeka's testimony was admitted under a proffer; and (6) precluding Cassandra Stubbs's testimony. Lowe offers no case law or argument showing that the court's evidentiary rulings were an abuse of discretion or that allowing Stinson to testify was a correct ruling on the State's hearsay objection. Moreover, Lowe has not shown that he was prejudiced by those rulings as the trial court reached a decision on each postconviction claim which this Court now has under review. *Cf. Earl v. State*, 314 So. 3d 1253, 1254 (Fla. 2021) (finding that the party challenging trial court's decision has the burden to establish prejudicial error).

Further, because Lowe has not identified that any of the evidentiary rulings are in fact erroneous, his allegation of inconsistent rulings leading to a due process violation is conclusory and does not present a valid appellate claim of error. *See Duest*, 555 So. 2d at 852 (discussing purpose of an appellate brief is to present arguments in support of the appellate points and merely referencing arguments made below "without further elucidation does not suffice to preserve issues" and issues will be deemed waived). *See also Kearse*, 969 So. 2d at 990; *Cooper*, 856 So .2d at 977 n. 7. Also, where the "alleged errors are either meritless or procedurally barred, or do not meet the Strickland standard" "the contention of cumulative error is similarly without merit." *Vining*, 827 So. 2d 219.

In a *Strickland* claim, the defendant must show that counsel's decision is deficient and prejudicial. In this case, one of the issues involved the sufficiency of counsel's impeachment of Blackmon with his alleged admissions and a 1991 affidavit and whether Strickland prejudice resulted. That inquiry involves assessing what counsel knew of the facts, how the defense strategy was developed, and why certain decisions were made in light of the case facts. Discussing the facts, including Lowe's fingerprints at the scene, Blackmon's presence at home in bed at the time of murder, availability of impeachment the State may have, and the strength/ weaknesses of the evidence presented and witnesses not called were relevant factors/testimony, and the court properly admitted thhis. Conversely, counsel's decision not to call witnesses from the 1991 penalty phase rests on the reason not to call those witnesses and whether Lowe was prejudiced. The 1991 witnesses' testimony was a matter of record and neither counsel's

decision not to call them and the trial court's assessment of Strickland prejudice is easily resolved by looking at the transcripts from 1991 and comparing that to the 2011 presentation of counsel. The State relies on its answer to Issue I above.

With respect to the State's hearsay objection to Stinson being overruled, yet Lowe was required to proffer McQuade's and Woulard's testimony, the fact remains that the court considered that testimony in determining whether counsel rendered ineffective assistance for not presenting impeachment witnesses. As such, Lowe cannot show prejudice arising from how that testimony was offered during the hearing. Likewise, even though the court took a proffer from Tomeka, the court made findings on the timeliness of the claim, the admissibility of her hearsay statements at a retrial, and determining that if the claim were timely and Tomeka's testimony admissible hearsay, it would not have resulted in an acquittal. No abuse of discretion has been shown from the court's taking testimony through proffers.

Finally, excluding Stubbs from testifying about Covid and how defense counsel investigate capital cases was not error. Claims of ineffective assistance may be resolved without resorting to a *Strickland* expert. Trial judge, as an attorney, may resolve defense counsel's Strickland decisions and strategic choices without resorting to expert opinions. *Provenzano v. Singletary*, 148 F.3d 1327, 1331-1332 (11th Cir. 1998) (finding Strickland expert testimony not relevant; reasonableness of counsel's decision is a question of law to be decided by the court" and "not a matter subject to factual inquiry and evidentiary proof"); *Freund v. Butterworth*, 165 F.3d 839, 863, n.33 (11th Cir. 1999). Further, to the extent Lowe was attempting to

prove he could not investigate his case in 2020 in a timely, thorough manner because of Covid, that misses the point of the State's defense that the claims challenging Woulard's discovery and juror misconduct were untimely because he did not raise them in the original motion. (2PCR 1399-1411). Woulard's name appeared in Blackmon's 1991 deposition, Juror Liss's alleged sleeping, appeared in the resentencing transcript, and the other three juror's alleged misconduct was based on the resentencing transcript and juror questionnaires in the exclusive possession of the defense. As such, those issues could have been and should have been raised in the 2020 postconviction motion as all were record matters or could have been found via internet searches and on the CCIS system. Difficulties arising from Covid were irrelevant to that pleading failure. The State relied on its answer to the individual issues address in Issue I and Issue III above. Moreover, Lowe received a hearing of his claim regarding Woulard. No prejudice has been established. Because Lowe has not shown that the evidentiary rulings were an abuse of discretion, he cannot show that he did not get a fair hearing of his claim. No constitutional infirmity exists and this Court should affirm.

CONCLUSION

Based upon the foregoing, the State requests respectfully this Court affirm.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 1st day of October 2026, I electronically filed the foregoing with the Clerk of Court by using the Florida Courts E-Portal Filing System which will send a notice of electronic filing to the following: Brittney N. Lacy, Esq., at LacyB@ccsr.state.fl.us and Courtney M. Hammer, Esq. at HammerC@ccsr.state.fl.us and pleadings@ccsr.state.fl.us; at Capital Collateral Regional Counsel-South, 110 SE 6th Street, Ste 701, Fort Lauderdale, Florida 33301-5001.

CERTIFICATES OF COMPLIANCE

I HEREBY CERTIFY that the foregoing pleading has been produced in 14-point Bookman Old Style and that according to the Word program on which this document was written it contains 29008 words which exceeds the word limit set in Rule 9.210(a)(2)(C), Fla. R. App. P. but is in compliance

with this Court's September 30, 2026, Order allowing 30,254 words, and in compliance with and Fla. R. App. P. 9.100(g) and 9.210.

FURTHER, I HEREBY CERTIFY that the legal authorities identified in the pleading exist and are accurately cited in compliance with Fla. R. Gen. Prac. & Jud. Admin. 2.515 and 2.520(a)(3), (5).

/s/ Leslie T. Campbell

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